

IN THE HIGH COURT OF KERALA AT ERNAKULAM

C.R.

PRESENT

THE HONOURABLE MR. JUSTICE DEVAN RAMACHANDRAN

THURSDAY, THE 13TH DAY OF MARCH 2025 / 22ND PHALGUNA, 1946

WP(C) NO. 22750 OF 2018

PETITIONER:

ST. STEPHEN'S MALANKARA CATHOLIC CHURCH,
KATTANAM VILLAGE, BHARANICKAVU, ALAPPUZHA,
REPRESENTED BY ITS TRUSTEE SILVY GEORGE,
AGED 48 YEARS, S/O GEORGE, MANKAVIL,
KATTANAM VILLAGE, BHARANICKAVU, ALAPPUZHA.

BY ADVS. SRI.A.R.DILEEP
SRI.P.J.JOE PAUL
SRI.MANU SEBASTIAN

RESPONDENTS:

- 1 STATE OF KERALA, REPRESENTED BY THE PRINCIPAL SECRETARY, PUBLIC WORKS DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM-695 001.
 - 2 PRINCIPAL SECRETARY, LOCAL SELF GOVERNMENT DEPARTMENT, STATE OF KERALA, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM-695 001.
 - 3 DISTRICT COLLECTOR, COLLECTORATE, CIVIL STATION, ALAPPUZHA-688 001.
 - 4 CHIEF ENGINEER (R AND B), PUBLIC WORKS DEPARTMENT, MUSEUM, THIRUVANANTHAPURAM-695 033.
 - 5 EXECUTIVE ENGINEER (ROADS), PWD ROADS DIVISION, COLLECTORATE BUILDING, ALAPPUZHA-688 001.
 - 6 ASST. ENGINEER, PUBLIC WORKS DEPARTMENT, KATTANAM, ALAPPUZHA- 688 001.
 - 7 BHARANICKAVU GRAMA PANCHAYAT, REPRESENTED BY ITS SECRETARY, BHARANICKAVU, ALAPPUZHA - 690 520.
 - 8 SECRETARY, BHARANICKAVU GRAMA PANCHAYAT, BHARANICKAVU, ALAPPUZHA-690 520.
 - 9 SUB INSPECTOR, KURATHIKAD POLICE STATION, MAVELIKKARA, ALAPPUZHA-690 101.
- ADDL.R10. KERALA ADVERTISING INDUSTRIES ASSOCIATION,
REGN NO.EKM/TC/536/2012, STATE OFFICE IVTH FLOOR,
MATHEWSONS TRADE CENTRE (NEAR TVS), KALOOR, KOCHI- 682017,
REPRESENTED BY ITS SECRETARY G.RAMESH BABU, S/O.P.D.KESAVA PILLAI, AGED 60.

- ADDL.R11 THE CORPORATION OF KOCHI, REPRESENTED BY THE SECRETARY,
P.B.NO.1016, KOCHI- 682011.
- ADDL.R12 THE CORPORATION OF THIRUVANANTHAPURAM,
REPRESENTED BY SECRETARY, VIKAS BHAVAN (P.O), THIRUVANANTHAPURAM- 695033.
- ADDL.R13 THE CORPORATION OF KOLLAM,
REPRESENTED BY SECRETARY, KOLLAM- 691001.
- ADDL.R14 THE CORPORATION OF KANNUR,
REPRESENTED BY SECRETARY, P.B.NO.39, KANNUR- 670001.
- ADDL.R15 THE CORPORATION OF THRISSUR,
REPRESENTED BY SECRETARY, THRISSUR- 680011.
- ADDL.R16 THE CORPORATION OF KOZHIKODE,
REPRESENTED BY SECRETARY, KOZHIKODE- 673001.
- [ADDITIONAL RESPONDENT NO. 10 IS IMPEADED AS PER ORDER DATED 09.10.2018 IN
I.A.NO.1/2018 AND ADDITIONAL RESPONDENTS 11 TO 16 ARE SUO MOTU IMPEADED AS PER
ORDER DATED 09/10/2018. IN WPC.]
- ADDL.R17 THE CHIEF SECRETARY OF THE GOVERNMENT OF KERALA,
THIRUVANANTHAPURAM.
- ADDL. R18. THE STATE POLICE CHIEF, STATE OF KERALA.
- ADDL. R19. THE ELECTION COMMISSION OF INDIA, REPRESENTED BY ITS SECRETARY, NIRAVACHAN
SADAN, ASOKA ROAD, NEW DELHI - 110001.
- ADDL. R20. THE KERALA STATE ELECTION COMMISSION,
REPRESENTED BY ITS SECRETARY, CORPORATION OFFICE COMPLEX, LMS JUNCTION,
THIRUVANANTHAPURAM-695033.
- ADDITIONAL RESPONDENT NO. 17 TO 20 ARE IMPEADED AS PER ORDER DATED 13/11/2018 IN
WP(C) 22750/2018.
- ADDL. R21. NATIONAL HIGHWAY AUTHORITY OF INDIA,
G 5 & 6, DABRI-GURGAON RD, SECTOR 10 DWARKA, DELHI- 110075 IMPEADED AS PER THE
ORDER DATED 17.10.2022 IN WP(C) 22750/2018
- ADDL. R22. STATE ROAD SAFETY AUTHORITY,
REPRESENTED BY ITS CEO, TRANSPORT COMMISSIONERATE, FOURTH FLOOR, TRANS
BUILDING, VAZHUTHAKKAD, THIRUVANANTHAPURAM.
- ADDL. R23. DIRECTOR OF PANCHAYATH,
PANCHAYATH DIRECTORATE, SWARAJ BHAVAN, GROUND FLOOR, NANTHANCODE, KOWDIAR
P.O., THIRUVANANTHAPURAM-695003.
- ADDL. R24. DIRECTOR OF URBAN AFFAIRS, 1ST FLOOR, SWARAJ BHAVAN, NANTHANCODE P.O.,
THIRUVANANTHAPURAM-695003
ADDL. R22 TO R24 ARE SUO MOTU IMPEADED AS PER THE ORDER DATED 11.07.2024 IN WP(C)
22750/2018.

BY ADVS. SRI.K.V.SOHAN, STATE ATTORNEY

BABU KARUKAPADATH
SRI.N.NANDAKUMARA MENON (SR.)
SRI.M.K.CHANDRA MOHAN DAS,SC,KOLLAM MPT
SRI.K.K.CHANDRAN PILLAI (SR.)
SRI. SANTHOSH P.PODUVAL, SC, THRISSUR CORPORATION
SMT.BINDUMOL JOSEPH
PREMCHAND R.NAIR
SRI.SUNIL V.MOHAMMED
SRI.MANSOOR.B.H.
PHILIP J.VETTICKATTU
SANTHOSH MATHEW
BLAZE K.JOSE
ANOOP.V.NAIR
SMT.M.S.NEETHUMOL
SRI.ARUN THOMAS
SRI.B.S.SYAMANTHAK
SRI.DEEPU LAL MOHAN
SMT.S.AMBILY
SMT.NIVEA LIZ PETER FERNANDEZ
SRI.P.K.MANOJKUMAR,SC,TVPM CORPORATION
SRI.JENNIS STEPHEN
SMT.ANJU ANILKUMAR
SMT.NAMITHA NAMBIAR
SRI.P.M.MOHAMMED HASSAN
SRI.SAJI THOMAS
SRI.VIJAY V. PAUL
SMT.VANIAH MARIA DOMINIC
SMT.KARTHIKA MARIA
SMT.M.MEENA JOHN, SC, KANNUR MUNICIPAL CORPORATION
SMT.VEENA RAVEENDRAN
SRI.ANIL SEBASTIAN PULICKEL
SMT.DIVYA SARA GEORGE
SMT.JAISY ELZA JOE
C.N.PRABHAKARAN
KODOTH SREEDHARAN
SHRI.DEEPU LAL MOHAN, SC, STATE ELECTION COMMISSION, KERALA
SHRI.ASOK M.CHERIAN, ADDL. ADVOCATE GENERAL
SRI.SHYAMPRASANTH T.S., GOVERNMENT PLEADER
SHRI.S.SREEKUMAR (KOLLAM), SC, KOLLAM MUNICIPAL CORPORATION
SRI.SUMAN CHAKRAVARTHY, SC, THIRUVANANTHAPURAM CORPORATION
SRI.HARISH VASUDEVAN, AMICUS CURIAE
SRI.JACOB MATHEW, AMICUS CURIAE
SRI.VINCENT JOSEPH
SRI.GEORGE VARGHESE PERUMPALLIKUTTIYIL

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION ON 13.03.2025, ALONG WITH WP(C).25784/2018, 42574/2018 AND 27642/2021, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE DEVAN RAMACHANDRAN

THURSDAY, THE 13TH DAY OF MARCH 2025 / 22ND PHALGUNA, 1946

WP(C) NO. 25784 OF 2018

PETITIONER:

VIJU, AGED 45 YEARS, S/O.K.T.JOSEPH, PROPRIETOR OF L.K.PROPERTIES, FORMERLY AT HEAVENLY PLAZA, KAKKANAD P.O., KOCHI - 21 AND NOW AT AVM BUILDING, EDAPPALLY NORTH, KOCHI - 24, RESIDING AT KACHAPPILLY HOUSE, PUTHENVELIKKARA P.O., THIRUTHOOR, N. PARAVOOR, ERNAKULAM.

BY ADVS.SRI.K.V.SABU
SRI.AKHIL K SABU

RESPONDENTS:

- 1 CHIEF ENGINEER, NATIONAL HIGHWAY
NATIONAL HIGHWAY, THIRUVANANTHAPURAM - 695 033.
- 2 ASSISTANT EXECUTIVE ENGINEER
NATIONAL HIGHWAY SUB DIVISION, N.PARAVUR - 683 513.
- 3 ASSISTANT ENGINEER, NO.3, N.H. SUB DIVISION, N.PARAVUR - 683 513.
- 4 SECRETARY TO GOVERNMENT, PUBLIC WORKS DEPARTMENT, SECRETARIAT,
THIRUVANANTHAPURAM - 695 033.

ADDL.R5 THE CORPORATION OF KOCHI,
REPRESENTED BY THE SECRETARY, P.B.NO.1016, KOCHI- 682011.

ADDL.R6 THE CORPORATION OF THIRUVANANTHAPURAM,
REPRESENTED BY SECRETARY, VIKAS BHAVAN (P.O), THIRUVANANTHAPURAM- 695033.

ADDL.R7 THE CORPORATION OF KOLLAM, REPRESENTED BY SECRETARY, KOLLAM- 691001.

ADDL.R8 THE CORPORATION OF KANNUR, REPRESENTED BY SECRETARY, P.B.NO.39, KANNUR- 670001.

ADDL.R9 THE CORPORATION OF THRISSUR, REPRESENTED BY SECRETARY, THRISSUR- 680011.

ADDL.R10 THE CORPORATION OF KOZHIKODE
REPRESENTED BY SECRETARY, KOZHIKODE- 673001.
(ADDITIONAL R5 TO R10 ARE SUO MOTU IMPEADED AS PER ORDER DATED 09.10.2018.)

ADDL.R11 THE CHIEF SECRETARY, GOVERNMENT OF KERALA.

ADDL.R12 THE STATE POLICE CHIEF, STATE OF KERALA.

ADDL.R13 THE ELECTION COMMISSION OF INDIA, REPRESENTED BY ITS SECRETARY, NIRAVACHAN
SADAN, ASOKA ROAD, NEW DELHI-110001.

ADDL.R14 THE KERALA STATE ELECTION COMMISSION
REPRESENTED BY ITS SECRETARY, CORPORATION OFFICE COMPLEX,
LMS JUNCTION, THIRUVANANTHAPURAM-695033.
(ADDL.R11 TO R14 ARE SUO MOTU IMPEADED AS PER ORDER DATED 13/11/2018)

ADDL.R15 THE NATIONAL HIGHWAYS AUTHORITY OF INDIA
G 5&6, DABRI-GURGAON RD, SECTOR 10 DWARAKA, DELHI - 110 075

[ADDL.R15 IS IMPEADED AS PER COMMON ORDER DATED 17.10.2022 IN WP(C)25784/2018.]

BY ADVS. BABU KARUKAPADATH
SRI.N.NANDAKUMARA MENON (SR.)
SRI.M.K.CHANDRA MOHAN DAS,SC,KOLLAM MPT
SMT.M.MEENA JOHN, SC, KANNUR MUNICIPAL CORPORATION
SRI. SANTHOSH P.PODUVAL, SC, THRISSUR CORPORATION
SMT.BINDUMOL JOSEPH
SRI.K.V.SOHAN, STATE ATTORNEY
SRI.DEEPULAL MOHAN
SRI.C.A.MAJEED,SC,STATE ELECTION COMMIS
SRI.B.S.SYAMANTHAK
SRI.P.K.MANOJKUMAR,SC,TVPM CORPORATION
SMT.ANJU ANILKUMAR
SHRI.DEEPULAL MOHAN, SC, STATE ELECTION COMMISSION, KERALA
SRI.C.N.PRABHAKARAN
SHRI.ASOK M.CHERIAN, ADDL. ADVOCATE GENERAL
SRI.BIDAN CHANDRAN
SRI.HARISH VASUDEVAN, AMICUS CURIAE
SRI.JACOB MATHEW, AMICUS CURIAE
SRI.SUMAN CHAKRAVARTHY, SC, THIRUVANANTHAPURAM CORPORATION

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON 13.03.2025, ALONG WITH WP(C).22750/2018
AND CONNECTED CASES, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE DEVAN RAMACHANDRAN

THURSDAY, THE 13TH DAY OF MARCH 2025 / 22ND PHALGUNA, 1946

WP(C) NO. 42574 OF 2018

PETITIONER:

SUO MOTU
SUO MOTU PROCEEDINGS INITIATED BASED ON THE PETITION SUBMITTED BY
SRI.SAJI.S.K, CHETTIKULANGARA REGARDING NON REMOVAL OF UNAUTHORIZED
FLAGPOST AND FLEX BOARD BY CHETTIKULANGARA GRAMA PANCHAYATH.

RESPONDENTS:

- 1 STATE OF KERALA, REPRESENTED BY THE CHIEF SECRETARY,
GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM.
- 2 PRINCIPAL SECRETARY, LOCAL SELF GOVERNMENT DEPARTMENT,
GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM 695 001.
- 3 CHETTIKULANGARA GRAMA PANCHAYATH
REPRESENTED BY ITS SECRETARY, CHETTIKULANGARA, ALAPUZHA - 690106.

- ADDL.R4. STATE POLICE CHIEF, KERALA
(ADDL.R4 IMPEADED SUO MOTU ADDL.R4 IMPEADED SUO MOTU AS PER ORDER DATED
20.08.2019 IN W.P.(C) 42574/18.)
- ADDL.R5. THE SECRETARY, NORTH PARUR MUNICIPALITY
- ADDL.R6. THE SECRETARY, ANGAMALY MUNICIPALITY
- ADDL.R7. THE SECRETARY, CHAVAKKAD MUNICIPALITY
- ADDL.R8. THE SECRETARY, KALAMASSERY MUNICIPALITY
- ADDL.R9. THE SECRETARY, KODUNGALLUR MUNICIPALITY
- ADDL.R10. THE SECRETARY, NEDUMBASSERY GRAMA PANCHAYATH, ERNAKULAM
- ADDL.R11. THE SECRETARY, NENMANIKKARA GRAMA PANCHAYATH, THRISSUR
- ADDL.R12. THE SECRETARY, KAIPAMANGALAM GRAMA PANCHAYATH, THRISSUR
- ADDL.R13. THE SECRETARY, EDATHIRUTHI GRAMA PANCHAYATH, THRISSUR

- ADDL.R14. THE SECRETARY,VADANAPPALLY GRAMA PANCHAYATH, THRISSUR
- ADDL.R15. THE SECRETARY,PUDHUKKAD GRAMA PANCHAYATH, THRISSUR
- ADDL.R16. THE SECRETARY,SREENARAYANAPURAM GRAMA PANCHAYATH, THRISSUR
- ADDL.R17. THE SECRETARY,VALAPPAD GRAMA PANCHAYATH, THRISSUR
- ADDL.R18. THE SECRETARY,NATTIKA GRAMA PANCHAYATH, THRISSUR
[ADDL.R5 TO R18 ARE IMPEADED SUO MOTU AS PER ORDER DATED 11.10.19 IN W.P.(C) 42574/18.]
- ADDL.R19 NATIONAL HIGHWAY AUTHORITY OF INDIA, G 5&6, DABRI - GURGAON RD, SECTOR 10
DWARKA, DELHI – 110075
[ADDL.R19 IMPEADED SUO MOTU AS PER ORDER DATED 17.10.22 IN W.P.(C) 42574/18.]

BY ADVS. SRI.K.V.SOHAN, STATE ATTORNEY
SRI.ASOK M CHERIAN, ADDL.A.G.
SRI.JACOB P.ALEX
C.G.BINDU
SHRI.ANOOP V.NAIR, SC, NORTH PARAVUR MUNICIPALITY
SRI. P.P.THAJUDEEN, SC, ANGAMALY MUNICIPALITY
SRI.S.SUJIN
SRI.K.A.NOUSHAD
SRI.GEORGE SEBASTIAN
SRI.K.JAJU BABU (SR.)
SHIBIN
SMT.M.U.VIJAYALAKSHMI
SRI.JOSEPH P.ALEX
SHRI.ANIL K. MOHAMMAD, SC, ANGAMALY MUNICIPALITY
SRI.R.RAJPRADEEP
T.K.DEVARAJAN
T.N.SREEKALA
FRANKLIN ARACKAL
M.B.SOORI
SEBY JOSEPH
RAHUL SEBASTIAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON 13.03.2025, ALONG WITH WP(C).22750/2018 AND CONNECTED CASES, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE DEVAN RAMACHANDRAN

THURSDAY, THE 13TH DAY OF MARCH 2025 / 22ND PHALGUNA, 1946

WP(C) NO. 27642 OF 2021

PETITIONER:

RAJ J.R., AGED 51 YEARS, S/O. OACHIRA RAGHAVAN, RESIDING AT J.R. VILLA, VIYYUR P.O. THRISSUR DISTRICT.

BY ADV SANTHOSH P.PODUVAL

RESPONDENTS:

- 1 THE SUB INSPECTOR OF POLICE,
TOWN EAST POLICE STATION, THRISSUR DISTRICT 680 001.
- 2 THE SUB INSPECTOR OF POLICE TRAFFIC,
THRISSUR CITY, THRISSUR 680 001.
- 3 THE ASSISTANT COMMISSIONER OF POLICE,
THRISSUR CITY, THRISSUR 680 001.

ADDL.R4 THE NATIONAL HIGHWAYS AUTHORITY OF INDIA,
G.5&6, DABRI - GURGAON ROAD, SECTOR 10 DWARKA , DELHI – 110075.

(ADDL. R4 IS SUO MOTU IMPEADED AS PER ORDER DATED 17.10.2022 IN WP(C) 27642/2021.)

BY ADVS.HARISH VASUDEVAN, AMICUS CURIAE
ADV.BIDAN CHANDRAN
SHRI.ASOK M.CHERIAN, ADDL. ADVOCATE GENERAL

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON 13.03.2025, ALONG WITH WP(C).22750/2018 AND CONNECTED CASES, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

C.R.**JUDGMENT**

Rarely, if not ever, has '**Visual Pollution**' and "**Destination Aesthetics**" – so vital to tourism – seriously, if not at all, engaged the attention of the Authorities in Kerala. These concepts are widely used to describe the compounded effects of disorder, excess and clutter of various objects and graphics in the landscape; and the inevitable corollary of lack of visual appeal and aesthetics.

2. While many parts of the World have awoken to the pernicious effects of "Visual Pollution" - which, in its most simplistic connotation, means the impairment of one's ability to enjoy a vista or a view - and its impact on safety, health and environment, leading to effective legislations against it, our civil officials, Authorities and politicians remain totally occluded to it often contributing to it unmindfully.

3. This is particularly a shame in our small State, which is an eclectic God bestowed cornucopia of enchanting waterfalls, beautiful lagoons, meandering rivers, breath taking hill stations and other amazing natural scenarios - making it a traveller's dream and a tourist's fantasy.

4. Kerala is truly 'Gods Own Country' - buffeted by the warm winds of the Arabian Sea to the West and sheltered by the Western Ghats to the East; from resplendent tea plantations to rich jungles; from the stunning beaches to the maze of backwater canals cutting through rice fields - the viridity unfolds in varying shades of lush green, as the colour spectrum expands to accommodate its soul.

5. Nature having bestowed our State with such visual magnificence, it is our existential compulsion to protect and preserve it, maintaining the tenuous balance between ever expanding human activity and sustainable development.

6. But, alas, this is one sphere in which policy makers, civil enforcement officials and politicians have failed; and unfortunately political parties - to whom the citizens of this State would normally turn for guidance and leadership - have been the contributors to “visual pollution” and aesthetic violation, compounded by the obvious health and safety risks attached to it, by carelessly, thoughtlessly and without care of its consequences, placing and installing large boards, banners, flags, festoons and such other in every nook and corner of public spaces and streets. Private entities and individuals have also followed it, advertising themselves or their wares through such boards and banners, knowing fully well that they are illegal, but presumably emboldened on account of such installations by the political class and even parties in power.

7. A survey on tourist magazines would luculently show the endless appeals to enjoy beautiful destinations, displaying photographs of blue seas, green islands, sailing boats and splendorous sunsets. When it comes to urban tourism, such images are sold with expressions of beauty, cityscapes inviting to be walked, inviting lighting, cozy restaurants, etc. The quest of tourists is essentially for beauty. *Aesthetics matter*. In marketing tourism, the first thing travellers relate to

is the image of the place and destination they visit. Neatness is one of the most essential parameters and tourists have an anticipated idea of what they want to see – and it is certainly not dirt or lack of order, but expect the aesthetics they had foreseen. Indubitably, tourist attractions or facilities, cityscapes and landscapes, are appreciated only if properly presented and aesthetically maintained. Experience has shown that pedestrian tourists are more mysterious looking for neat sidewalks, colourful showcases, comfortable benches, fragrant farbars, restored old buildings with glorious facades.

8. How does our landscapes compare? Alas, somehow and for inscrutable reasons, the current condition of pedestrian areas in most parts of our state are overlooked and neglected. Be that in the Cities, Towns or Villages, public spaces are not ideal case studies, as they are often obstructed by electric wires, gaping manholes, and sewerage and water utilities, robing any pleasantry in the walking experience. And, to exacerbate, the limited pathways available are further obstructed by the menace of flex boards, hoardings, banners, festoons and flags, fixed to, or hanging over them.

9. About four and half years ago, the petitioner approached this Court through this writ petition, complaining that the view and sight to their buildings were being obstructed and blocked out by a certain political group and others, by placing huge billboards in the public spaces in front of it. It may have been very easy for this court to have issued directions to the concerned Authorities, to have

these boards removed and thus get a statistical closure of this writ petition; but I felt it constitutionally enjoined to commence a sustained effort against the uncontested menace of Boards/Banners/Hoardings/Flags/Festoons devouring our public spaces, since, even if the offending installations involved in this writ petition were removed, there was no guarantee that it will not be placed again by the same people, or others. This court was further persuaded to do so because, it was brought to judicial notice that the entire State had been flooded by such unauthorised and illegal Boards/Banners/Hoardings/Flags/Festoons; and it was thus unexpendable that this Court issue directions for general application for its removal, because otherwise, our State would turn into a virtual dump of countless such installations - which, subsequently, have been revealed to be in several lakhs in number - because once installed, they were never removed and fresh ones were either put on top of it, or the old ones recklessly flung to the road sides and other public spaces.

10. Further, it was clear from the pleadings on record that at least two judgments had been delivered in the past by two different Division Benches of this Court, directing removal of all unauthorised boards, banners, flags, etc., copies of which are available on record as Exhibits P10 and P12, but that no concrete action had been taken by any of the Authorities concerned. In fact, these judgments had been delivered noticing earlier circulars/orders issued by the Government, which have been appended to this writ petition as Exhibits P5 and

P7; while a third circular, namely Exhibit P11, had been issued by the Government consequent to Exhibit P10 judgment, which was also noticed when Exhibit P12 had been delivered. In fact, the contents of Exhibit P7 circular dated 08.01.2010 have been extracted in Exhibit P12 judgment, which reads as under:

“1. The construction of worship places, idols of religious leaders or religious building on the Assets of Local Self Government or public places are to be prohibited. Such encroachments are to be evicted without any discrimination.

2. To evict the illegal encroachments police assistance can be utilised under Section 550 of Kerala Municipality Act and Section 252 of Kerala Panchayat Raj Act if necessary.

3. The advertisement boards, festoons, idols, flags, illegally erected by political parties, other unions, institutions, individual, without obtaining sanction from the Local Self Governments on roadside pavement, crossings, traffic circles and on other public places causing obstruction to pedestrians and traffic problem are to be prohibited and to proceed under the law and remove the same.
(Emphasis Supplied)

4. With co-operation of public in public places of such area, Grama Panchayat/Municipality/Corporation shall initiate necessary steps to beautify and maintain it neat.

5. To take immediate action against any type of encroachment of public places within the limits of Grama Panchayat/Municipality/Corporation.”

11. However, in spite of all these, it was limp that the menace of unauthorised boards/banners/flags etc. involving and occupying public spaces, continued with virtual impassivity; and hence that mere words would be of no consequence.

12. This unabated menace was, therefore, not one that this Court could

afford to be oblivious to, since these illegal and unauthorized Boards/Banners/Hoardings/Flags/Festoons apart from causing disconcerting and annoying “visual pollution”, was also causing great stress on the already overwhelming public waste disposal system, posing grave and cataclysmic danger to motorists and pedestrians alike; apart from the inevitable and real health concerns since most of them were printed on dangerous and non-biodegradable materials. It was thus that this Court issued the first of the nearly thirty interim orders, on 27.07.2018, the relevant portions of which are as below:

“In this case, the petitioner brings to the notice of this Court a very deleterious and disconcerting situation found in most of the urban areas and in some rural areas in Kerala. This is the placing, positioning and illegal installation of various boards, including advertisements and self promoting boards erected by individuals and entities on the street corners, pedestrian areas, on hand railings, public posts and every other public installation, as if all these areas are meant for advertisements and nothing else.

2. The position sometimes is so distressing that the view of the pedestrians from the pedestrian path is completely blocked to the main road and what they see are only the back sides of large "flex boards" which are as tall as 8 or 10 feet in height. These boards, as common experience shows, are made using plastic and Poly-Vinyl Chloride (PVC) materials and are conveniently called "flex boards" and its use has now rapidly escalated, since I am told that the expenses for printing and making it is very exiguous.

4. That apart, the perilous and nocent effects of such hoardings with respect to the angle of pollution is also something that seems to be completely forgotten by the Authorities concerned who have a duty vested in them to ensure that the nationally and internationally accepted norms for pollution fighting is now adopted. It is baffling as to how the Authorities allow such flex boards and PVC boards to be installed on hand rails telephone posts, electrical posts or any other

public installations as if the persons doing so have some right guaranteed to them as also the impunity to get away from such action and I am, therefore, of the firm view that it is now time for the concerned Authorities to have a comprehensive view of all these issues.

6. I am making this order essentially in public interest, since I notice that the petitioner herein has approached this Court against this malaise in the locality where they are situated. However, I am of the firm view that a parochial consideration of this is not apposite when this Court is also aware that such instances are rampant in almost all parts of Kerala.

9. Therefore, answers will have to be given by those authorities who have control over the State of Kerala in such matters and I cannot find a better Authority than the Chief Secretary of the State of Kerala and the Principal Secretary in charge of the Local Self Government Institutions to inform this Court how this malady of individuals and institutions displaying boards in such indiscriminate manner is allowed in various territories of the State without any control.

10. I am making this order more so because, the learned Government Pleader brings to my notice Ext.P7, which is a Circular issued by the Government of Kerala as early as on 8.1.2010, wherein it appears that such installations and Boards have been virtually found illegal and impermissible. The fact that the circular has been in effect for the last more than 8 years but that the nuisance still continues unabated even today is something that has to be taken note of very seriously by the competent Authorities. The influence and power of the individuals and entities who indulge in such illegal activities cannot occlude the vision of the Authorities who are enjoined to act for the larger interests of the society.

11. For such reason, I direct respondents 1 and 2 to file an affidavit before this Court in this matter indicating the policy of the Government of Kerala with respect to such boards and also the "Advertisement Code" and the "Pollution Control mechanisms or Protocol", if any, applicable to the whole of the State and the manner in which such flex boards and PVC installations are being regulated or controlled. The affidavit shall be placed on record by respondents 1

and 2 positively on or before 16.8.2018.”

13. In pursuance of the directions in the above order, on 18.9.2018, the Additional Chief Secretary, Local Self Government Department had sworn to an affidavit affirming the above and unequivocally admitting that the Government was enjoined to remove unauthorized Boards/ Bill Boards/ Flags/Festoons installed without permission of the concerned Local Self Government Institutions and that many have been installed so. On the same day itself, Sri.Harish Vasudevan, Learned Counsel of the Court, was appointed as the *Amicus Curiae*, adverting to the order passed on 18.09.2018.

14. Subsequently, a Circular dated 06.10.2018, bearing No.R.C.2/41/2018/LSGD, was issued by the Government, the essence of it being, imposing primary responsibility on the Secretaries of the concerned Local Self Government Institutions to remove Boards/Banners/Hoardings/Flags/Festoons erected illegally by persons/entities. The Circular also specified the time frames within which these must be removed and outlined the consequences of failing to do so within the stipulated period, including fine and other legal proceedings against such individuals/entities.

15. Subsequently on 23-10-2018, the learned State Attorney informed this court that Nodal Officers has been appointed for the various Self Government institutions to oversee that all offices are following the Orders issued by this court and the Circulars issued by the Government; and that the citizens could approach

the said Officers directly, if no action is seen taken by the concerned Secretaries/ Field Staff of the Local Self Government Institutions. This was recorded so, in the order of the said date.

16. Several orders/directions were thereafter issued, touching upon the various Circulars and Government Orders; and, meanwhile, the Election Commission was also brought on record, since violations were most often noticed during the election period.

17. However, the problems remained unabated and though several thousands, if not lakhs of Boards/Banners/Hoardings/Flags/Festoons had been removed, the learned *Amicus Curiae* reported on 26.02.2019 that, in the place of boards so removed, new ones were seen returned. The court, thereupon, issued an order on that day, containing directions *ut infra*:

“10. Certainly, therefore, the time has come for this Court, to take cognizance of this and issue orders.

I, therefore, order:

(a) That all unauthorised flex boards/advertisement boards/banners/flags/hoardings which are now remaining on the public spaces/streets in this State shall be forthwith removed by the Secretaries of the concerned Local Self Government Institutions within a period of 10 days from today.

(b) Every unauthorised board/banner/flag/hoarding which remains after 10 days from today will become the personal responsibility of the concerned Secretary/Field Staff of the Local Self Government Institutions; and as I have already cautioned in my earlier order dated 23.10.2018, the advertisement tariff and penalties for such boards will be

recovered from such officers, through a personal recovery action to be initiated under the provisions of law, including the Revenue Recovery Act.

(c) Since the State Government, as has been stated before me by Shri.K.V.Sohan, has virtually adopted the stand that they have no effective mechanism in enforcing orders against the Secretaries of the Local Self Government Institutions, and consequently, that the entire responsibility to enforce such orders/ directives are on such officers, I order that the District Collectors of the respective districts shall, after a period of 10 days from today, cause an inspection of the territory under them and initiate action with respect to each unauthorised board/ banner/flag/hoarding and make the concerned Secretary/Field Staff of the said Institution personally responsible and initiate action against them.

(d) The concerned Secretary/Staff of the Local Government Institution shall, within the next 10 days, remove each of the unauthorised boards/ banners/flags/ hoardings, but shall not deposit them in the public disposal system and shall return each of them to the persons/entities who place or erect it illegally. They shall also, in addition to this, charge these persons/entities the applicable Tariff and Penalty and initiate action for recovery, failing which they will become responsible for such amounts. I further order that when any unauthorised board/ flag/banner/hoarding is detected and consequentially removed and returned to the entity/person, an appropriate criminal case, either under the IPC or under the Highway Act or under the Police Act or all of them shall be charged and registered against the persons/entities responsible for its erection and the Station House Officer of the Local Police Station will be responsible for the registration and investigation of such offences, once information to that effect is given by the Local Self Government Institutions to them.

(e) The State Police Chief will ensure that all Station House Officers of the Police Stations under him are adequately instructed to register cases against the entities/persons who erect such unauthorised boards/ banners/flags/hoardings, once such information is given to them by the Authorities of the

Local Self Government Institutions and that investigation into such crime shall be conducted without fear or favour.

(f) State Police Chief will also instruct the Station House Officers of all Police Stations to afford effective and adequate protection to the Secretaries, Field Staff and other employees of the Local Self Government Institutions, whenever such a requisition is made, so as to enable such persons to act in terms of this order without intimidation.

(g) Even though the Government has appointed two officers at the highest level as the "Nodal Officers", the experience in the past few months has shown that these officers have thoroughly failed in what was entrusted to them; and I, therefore, am of the firm opinion that a Nodal Officer for each district now becomes imperative. I, resultantly direct the Government to appoint the respective Deputy Directors of Panchayaths and Regional Joint Directors of Urban Affairs to be the Nodal Officers, who will oversee the implementation of the orders of this Court as well as the Circulars and Orders of the Government and they will be in overall supervision and control over the entire exercise in future. The notification for this purpose shall be issued by the Principal Secretary, Local Government Institutions, within a period of one week from the date of receipt of copy of this order.

(h) The respective Deputy Directors of Panchayaths and the Regional Joint Directors of Urban Affairs will publish their phone numbers, e- mail addresses and whatsapp numbers, if available, by making suitable notifications and publications, so that any member of the public and the citizenry of this State can approach said officers, whenever a violation is noticed by them. This shall be done by the respective officers without any delay but within a period of three days after the Government notifies them as the Nodal Officers."

18. The Government accepted the above directions and issued a circular dated 20.07.2019 addressed to all the Secretaries of Local Self Government Institutions, as annexed below:



കേരള സർക്കാർ

നം.ആർ.സി.2/41/2018/ത.സ്വ.ഭ.വ

തദ്ദേശ സ്വയം ഭരണ (ആർ.സി) വകുപ്പ്
തീരുവനത്തുപ്രകാരം തീയതി : 20.07.2019.

പരിപത്രം

വിഷയം : അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ള ബോർഡുകൾ/ബാനറുകൾ/ ഹോർഡിംഗുകൾ/കൊടികൾ തുടങ്ങിയവ നീക്കം ചെയ്യുന്നതുമായി ബന്ധപ്പെട്ട് ബഹു.ഹൈക്കോടതി 22750/18, 25784/18 & 42574/2018 എന്നീ റിട്ട് ഹർജികളിൽ 03.06.2019-ലും 17.07.2019-ലും പുറപ്പെടുവിച്ച പൊതു ഉത്തരവിന്റെ അടിസ്ഥാനത്തിൽ പുറപ്പെടുവിടുന്ന അധിക മാർഗ്ഗനിർദ്ദേശങ്ങൾ സംബന്ധിച്ച്

- സൂചന : 1) 08.12.2010 ലെ 57850/ആർസി4/2008/തസ്വഭവ നമ്പർ പരിപത്രം
2) 25.10.2013 ലെ 71806/ആർസി2/2013/തസ്വഭവ നമ്പർ പരിപത്രം
3) 07.03.2018 ലെ 41/ആർസി2/2018/തസ്വഭവ നമ്പർ പരിപത്രം
4) 22750/18, 25784/18 എന്നീ റിട്ട് ഹർജികളിൽ ബഹു.ഹൈക്കോടതി 18.09.2018, 03.10.2018 എന്നീ തീയതികളിൽ പുറപ്പെടുവിച്ച പൊതു ഉത്തരവുകൾ.
5) 06.10.2018 ലെ ആർസി2/41/2018/ത.സ്വ.ഭ.വ നമ്പർ പരിപത്രം
6) 22750/18, 25784/18 എന്നീ റിട്ട് ഹർജികളിൽ ബഹു.ഹൈക്കോടതി 23.10.2018 ൽ പുറപ്പെടുവിച്ച പൊതു ഉത്തരവ്.
7) 26.10.2018 ലെ സ.ഉ.(സാധാ)നം.2733/2018/തസ്വഭവ
8) 22750/18, 25784/18 എന്നീ റിട്ട് ഹർജികളിൽ ബഹു.ഹൈക്കോടതി 15.01.2019 ൽ പുറപ്പെടുവിച്ച പൊതു ഉത്തരവ്.
9) 21.01.2019-ലെ സ.ഉ.(സാധാ)നം.113/2019/തസ്വഭവ
10) 22750/18, 25784/18, 42574/2018 എന്നീ റിട്ട് ഹർജികളിൽ 26.02.2019-ൽ ബഹു.ഹൈക്കോടതി പുറപ്പെടുവിച്ച പൊതു ഉത്തരവ്.
11) 02.03.2019 ലെ സ.ഉ.(സാധാ)നം.504/2019/തസ്വഭവ
12) 22750/18, 25784/18, 42574/2018 എന്നീ റിട്ട് ഹർജികളിൽ 03.06.2019-ലും 17.07.2019-ലും ബഹു.ഹൈക്കോടതി പുറപ്പെടുവിച്ച പൊതു ഉത്തരവുകൾ.

സംസ്ഥാനത്തൊട്ടാകെ വിവിധ ഏജൻസികളും സംഘടനകളും സ്ഥാപനങ്ങളും രാഷ്ട്രീയ പാർട്ടികളും തദ്ദേശസ്വയംഭരണ സ്ഥാപനത്തിന്റെ അനുമതി കൂടാതെ പരസ്യ ബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ സ്ഥാപിക്കുന്നതുമൂലം അപകടങ്ങൾ ഉണ്ടാകുന്നതായി ശ്രദ്ധയിൽപ്പെട്ടതിനെ തുടർന്ന് ഇത് നിയന്ത്രിക്കുന്നതിനായി പരസ്യ ബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ സ്ഥാപിക്കുന്നതിന് ശുചീകരണങ്ങൾ ഏർപ്പെടുത്തിയും അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ളവ എടുത്തുമാറ്റാൻ തദ്ദേശസ്വയംഭരണ സ്ഥാപനങ്ങൾക്ക് നിർദ്ദേശം നൽകിയും സൂചന (1), (2), (3) പ്രകാരം സർക്കാർ പരിപത്രങ്ങൾ പുറപ്പെടുവിച്ചിരുന്നു.

: 2 :

2. പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ എന്നിവ അനധികൃതമായി സ്ഥാപിക്കുന്നത് തടയാൻ നിർദ്ദേശിച്ച് ബഹു. ഹൈക്കോടതി പരാമർശം (4) പ്രകാരം പുറപ്പെടുവിച്ച ഉത്തരവ് പാലിച്ചുകൊണ്ട് പരസ്യ ബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ സ്ഥാപിക്കുന്നതിന് പുതിയ മാർഗ്ഗനിർദ്ദേശം ഉൾപ്പെടുത്തിയും അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ളവ സമയബന്ധിതമായി എടുത്തുമാറ്റാൻ കർശന നിർദ്ദേശം നൽകിയും കോടതിവിധി കർശനമായി പാലിക്കാൻ തദ്ദേശസ്വയംഭരണ സ്ഥാപനത്തിന്റെ സെക്രട്ടറിമാർക്ക് നിർദ്ദേശം നൽകിയും സൂചന (5) പ്രകാരവും പരിപത്രം പുറപ്പെടുവിച്ചിരുന്നു. സൂചന (8) ലെ ബഹു.ഹൈക്കോടതി ഉത്തരവിലുള്ള നിർദ്ദേശത്തിന്റെ വെളിച്ചത്തിൽ സൂചന (5) ലെ പരിപത്രത്തിൽ പറഞ്ഞിട്ടുള്ള മാർഗ്ഗനിർദ്ദേശങ്ങൾ പാലിച്ചുകൊണ്ട് അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ള എല്ലാ പരസ്യ ബോർഡുകളും ബാനറുകളും ഹോർഡിംഗുകളും കൊടികളും നീക്കം ചെയ്യാൻ തദ്ദേശസ്വയംഭരണ സ്ഥാപനങ്ങളിലെ സെക്രട്ടറിമാർക്ക് നിർദ്ദേശം നൽകിയും അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ള പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ നീക്കം ചെയ്യുന്നതിലെ പുരോഗതി വിലയിരുത്താൻ പഞ്ചായത്ത് ഡയറക്ടറേറ്റിലെയും നഗരകാര്യ ഡയറക്ടറേറ്റിലെയും നോഡൽ ഓഫീസർമാർക്ക് നിർദ്ദേശം നൽകിയും ഉത്തരവ് പുറപ്പെടുവിച്ചിരുന്നു.

3. ബഹു. ഹൈക്കോടതി 22750, 25784, 42574/2018 എന്നീ റിട്ട് പെറ്റീഷനുകളിൽ 26.02.2019-ൽ പുറപ്പെടുവിച്ച പൊതു ഉത്തരവിൽ, അനധികൃത ഫ്ലക്സ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ നീക്കം ചെയ്യുന്നതിന് ആവർത്തിച്ച് നിർദ്ദേശം നൽകിക്കൊണ്ട് സർക്കാർ അഞ്ചോളം ഉത്തരവുകൾ/സർക്കുലറുകൾ പുറപ്പെടുവിക്കുകയും ബഹു. ഹൈക്കോടതി നിരവധി ഉത്തരവുകൾ പുറപ്പെടുവിക്കുകയും ചെയ്തെങ്കിലും അനധികൃത ബോർഡുകൾ വീണ്ടും അനിയന്ത്രിതമായി വർദ്ധിച്ചതായി വിലയിരുത്തുകയുണ്ടായി അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ള ഫ്ലക്സ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ ബന്ധപ്പെട്ട തദ്ദേശസ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാർ നീക്കം ചെയ്യാനും അപ്രകാരം നീക്കം ചെയ്യപ്പെട്ടിട്ടുണ്ടോയെന്ന് ജില്ലാ കളക്ടർമാർ പരിശോധിക്കുവാനും അനധികൃതമായിട്ടുള്ളവയെ സംബന്ധിച്ച് ബന്ധപ്പെട്ട തദ്ദേശസ്വയംഭരണ സ്ഥാപന സെക്രട്ടറി/ഫീൽഡ് സ്റ്റാഫ് എന്നിവരെ സ്വയം ഉത്തരവാദികളാക്കാനും അവർക്കെതിരെ നടപടിയെടുക്കാനും ബഹു. ഹൈക്കോടതി ഉത്തരവായിരുന്നു. കൂടാതെ, എല്ലാ ജില്ലകളിലെയും പഞ്ചായത്ത് ഡെപ്യൂട്ടി ഡയറക്ടർമാരെയും നഗരകാര്യ വകുപ്പിലെ റീജിയണൽ ജോയിന്റ് ഡയറക്ടർമാരെയും അനധികൃത പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ നീക്കം ചെയ്യുന്നതിന് മേൽനോട്ടം വഹിക്കുന്നതിനായി നോഡൽ ഓഫീസർമാരായി നിയമിക്കുകയും ചെയ്തിരുന്നു.

4. ബഹു. ഹൈക്കോടതി ഉത്തരവുകൾ പാലിച്ചുകൊണ്ട് സർക്കാർ ഉത്തരവുകൾ പുറപ്പെടുവിച്ചുവെങ്കിലും അനധികൃത ഫ്ലക്സ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ വിവിധ രീതിയിൽ സംസ്ഥാനത്തൊട്ടാകെ പെരുകുന്നുവെന്നും ഈ വിപത്ത് അടിയന്തരമായി തടയുന്നതിന് കടുത്ത നടപടികൾ സ്വീകരിക്കുന്നത് സംബന്ധിച്ച് സൂചന (12) പ്രകാരം ബഹു. ഹൈക്കോടതി ഉത്തരവിട്ടിരിക്കുന്നു.

: 3 :

5. മേൽ സാഹചര്യത്തിൽ അനധികൃത ഏജ്റ്റ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ സ്ഥാപിക്കുന്നത് തടയുന്നതിനും നീക്കം ചെയ്യുന്നത് സംബന്ധിച്ചും മൂൻ ഉത്തരവുകളിലും സർക്കുലറുകളിലും പരാമർശിച്ച നിർദ്ദേശങ്ങൾക്ക് പുറമേ താഴെ പറയുന്ന നിർദ്ദേശങ്ങൾ കൂടി കർശനമായും പാലിക്കണമെന്ന് തദ്ദേശസ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാർക്ക് കർശന നിർദ്ദേശം നൽകുന്നു. അല്ലാത്തപക്ഷം കർശന നടപടികൾ കൈക്കൊള്ളുന്നതാണ്. ജില്ലാ കളക്ടർമാരും പഞ്ചായത്ത്-നഗരകാര്യ ഡയറക്ടർമാരും നോഡൽ ഓഫീസർമാരും ബഹു ഹൈക്കോടതി ഉത്തരവുകളിലെയും സർക്കാർ ഉത്തരവുകളിലെയും നിർദ്ദേശങ്ങൾ തദ്ദേശസ്വയംഭരണ സ്ഥാപനങ്ങളിലെ സെക്രട്ടറിമാർ കർശനമായി നടപ്പിലാക്കണമെന്ന് ഉറപ്പു വരുത്തേണ്ടതാണ്.

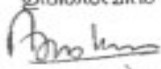
- (1) അനധികൃതമായി ഏജ്റ്റ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ സ്ഥാപിക്കുവാൻ സ്ഥാപനങ്ങളെയോ ഏജൻസികളെയോ സംഘടനകളെയോ വ്യക്തികളെയോ ഒരു കാരണവശാലും അനുവദിക്കരുത്.
- (2) തദ്ദേശസ്വയംഭരണ സ്ഥാപനത്തിന്റെ അനുമതിയോടെ അംഗീകൃത സ്ഥലത്ത് നിയമവിധേയമായി സ്ഥാപിക്കുന്ന ഏജ്റ്റ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ നിർദ്ദിഷ്ട സമയത്തിനു ശേഷം സ്ഥാപിക്കുന്നവർ തന്നെ എടുത്തുമാറ്റണമെന്ന് ഉറപ്പുവരുത്തേണ്ടതാണ്. ബോർഡുകൾ സ്ഥാപിക്കുന്നവർക്കു തന്നെയാണ് അത് എടുത്തുമാറ്റേണ്ട ചുമതലയുമെന്ന് അനുമതി നൽകുമ്പോൾ തന്നെ ബോധ്യപ്പെടുത്തേണ്ടതാണ്.
- (3) അനധികൃതമായി സ്ഥാപിക്കപ്പെട്ടിട്ടുള്ള ഏജ്റ്റ്/പരസ്യബോർഡുകൾ/ ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ തുടങ്ങിയവ സ്ഥാപിച്ചവരെ കൊണ്ട് തന്നെ നീക്കം ചെയ്യിക്കേണ്ടതും ആയതിന് പിഴ ഈടാക്കേണ്ടതും റവന്യൂ റിക്കവറി നടപടികൾ കൈക്കൊള്ളേണ്ടതും അത്തരക്കാർക്കെതിരെ കേസ് രജിസ്റ്റർ ചെയ്യേണ്ടതുമാണ്. അനധികൃതമായി സ്ഥാപിക്കപ്പെട്ടിട്ടുള്ള ഏജ്റ്റ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ യാതൊരു കാരണവശാലും പൊതു സ്ഥലത്തോ പൊതുമേഖലാ നിക്ഷേപസംസ്ഥാന സ്ഥലത്തോ നിക്ഷേപിക്കുവാൻ പാടില്ല. പകരം അത് സ്ഥാപിച്ചവർക്കു തന്നെ മടക്കി നൽകേണ്ടതും പിഴ ഈടാക്കേണ്ടതുമാണ്.
- (4) അനധികൃതമായി ഏജ്റ്റ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ സ്ഥാപിക്കുന്നതുമായി ബന്ധപ്പെട്ട് പ്രവർത്തിക്കുന്ന പരസ്യ ഏജൻസികളുടെ ലൈസൻസ് റദ്ദ് ചെയ്യുന്നതും ലൈസൻസ് നൽകാതിരിക്കുന്നതും ഉൾപ്പെടെയുള്ള നടപടികൾ തദ്ദേശസ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാർ കൈക്കൊള്ളേണ്ടതാണ്.
- (5) ജില്ലാ കളക്ടർമാർ ഓരോരുത്തരും അവരുടെ അധികാരപരിധിയിൽ വരുന്ന പ്രദേശങ്ങളിൽ അനധികൃതമായ ഏജ്റ്റ്/പരസ്യബോർഡുകൾ/ബാനറുകൾ/ഹോർഡിംഗുകൾ/കൊടികൾ ഉണ്ടായെന്ന് പരിശോധിക്കുന്നതിനുള്ള നടപടി സ്വീകരിക്കേണ്ടതും അത്തരത്തിലുള്ള കേസുകൾ തദ്ദേശ സ്വയംഭരണ സ്ഥാപനത്തിന്റെ പേര് സംഹിതം സർക്കാരിലേയ്ക്ക് റിപ്പോർട്ട് ചെയ്യേണ്ടതുമാണ്.

: 4 :

(6) നഗരകാര്യ ഡയറക്ടറും പഞ്ചായത്ത് ഡയറക്ടറും നോഡൽ ഓഫീസർമാരും തദ്ദേശസ്വയംഭരണ സ്ഥാപന തലത്തിൽ ഈ വിഷയവുമായി ബന്ധപ്പെട്ട് നടത്തുന്ന പ്രവർത്തനങ്ങൾ വിലയിരുത്തേണ്ടതും കൃത്യമായ മാർഗ്ഗനിർദ്ദേശങ്ങൾ യഥാസമയം തദ്ദേശസ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാർക്ക് നൽകേണ്ടതുമാണ്. ബഹു. ഹൈക്കോടതിയുടെയും സർക്കാരിന്റെയും ഉത്തരവുകൾ നടപ്പാക്കുന്നതിൽ വീഴ്ച വരുത്തുന്ന തദ്ദേശസ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാരുടെയും ഫീൽഡ് സ്റ്റാഫ് ഉൾപ്പെടെയുള്ളവരുടെയും വിവരം സഹിതം സർക്കാരിലേയ്ക്ക് റിപ്പോർട്ട് ചെയ്യേണ്ടതുമാണ്. ഈ വിഷയം സംബന്ധിച്ചുള്ള തദ്ദേശസ്വയംഭരണ സ്ഥാപനതലത്തിലുള്ള നടപടിവിവര റിപ്പോർട്ടും പൊതു അവലോകന റിപ്പോർട്ടും എല്ലാ മാസവും പത്താം തീയതിക്കു മുമ്പായി തദ്ദേശസ്വയംഭരണ (ആർ.സി.) വകുപ്പിന് ലഭ്യമാക്കേണ്ടതാണ്.

ഡോ. മിത്ര ടി.
അഡീഷണൽ സെക്രട്ടറി

അഡ്വക്കേറ്റ് ജനറൽ, എറണാകുളം
ശ്രീ.ഹരീഷ് വാസുദേവൻ, അമിഷസ് ക്യൂറി
സ്റ്റേറ്റ് അറ്റോർണി
അഡീഷണൽ ചീഫ് സെക്രട്ടറി, ആഭ്യന്തര വകുപ്പ്
പ്രിൻസിപ്പൽ സെക്രട്ടറി, പൊതുമരാമത്ത് വകുപ്പ്.
പ്രിൻസിപ്പൽ സെക്രട്ടറി, ഗതാഗത വകുപ്പ്.
എല്ലാ ജില്ലാകളക്ടർമാർക്കും.
പഞ്ചായത്ത് ഡയറക്ടർ, തിരുവനന്തപുരം.
നഗരകാര്യ ഡയറക്ടർ, തിരുവനന്തപുരം.
എല്ലാ തദ്ദേശ സ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാർക്കും (പഞ്ചായത്ത് ഡയറക്ടർ/
നഗരകാര്യ ഡയറക്ടർ മുഖേന)
എക്സിക്യൂട്ടീവ് ഡയറക്ടർ, ഇൻഫർമേഷൻ കേരള മിഷൻ, തിരുവനന്തപുരം.
ഇൻഫർമേഷൻ & പബ്ലിക് റിലേഷൻസ് (വെബ് & ന്യൂ മീഡിയ) വകുപ്പ്.
കരുതൽ ഫയൽ/ഓഫീസ് കോപ്പി

ഉത്തരവിൻ പ്രകാരം

സെക്ഷൻ ഓഫീസർ
e

19. Thereafter, various innovations were thought of, but still the implementation of the directions seemed to pose challenges for the Authorities.

20. The problem still remaining unabated, the learned *Amicus curiae* pointed out that, one of the reasons for the lack of implementation of the directions of this Court and the Circulars consequent to it issued by the

Government, is the clandestine way in which the entities/persons in the Advertisement/Printing industries act in disregard to the afore, requisitioned by vested interests. This court, therefore, in the order dated 17.07.2019, issued the following additional directions.

“7. Consequentially, I order the Principal Secretary of the Local Self Government Department to incorporate necessary orders/directions to all Local Self Government Institutions in the circular to be issued as afore directed, to immediately initiate action against such entities/persons in the advertisement field who illegally engage in the erection of such unauthorised Boards/Banners/Flags, including cancellation of their licences. Needless to say, directions will also be issued to ensure that licences of such persons/entities are not renewed, if they are found indulging in activities contrary to the orders of this Court, since flagrant violations of this nature will require to be dealt with a firm hand.”

21. This matter thus was pending with various further orders being issued and each of such being complied with by the Government, by issuing corresponding Circulars regularly. The case thus continued as a “work in progress”, with the Road Safety Authority also issuing Circulars in terms of the orders of this Court, one such being that dated 06.02.2020, reproduced under:



KERALA ROAD SAFETY AUTHORITY

Established under KRSA Act 2007 by Government of Kerala



No. A2/121/KRSA/2013

Dated: 06-02-2020

From

The Commissioner, Road Safety

To

The DGP & State Police Chief, Kerala,

The Chief Engineer, PWD (NH & Administration),

The Chief Engineer PWD (Roads & Bridges)

The Chief Engineer (LSGD), Engineering Wing,

The Director, Urban Affairs Department, Government of Kerala

The Director, Panchayat Department, Government of Kerala

All Chairmen, District Road Safety Councils & District Collectors

Sir,

Subject: Removal of unauthorised Hoardings, Banners, Display Boards and other similar Materials or Structures likely to cause accidents on a Public Road - General Order - issued- Reg.

Ref:- 1). Order dated 30-01-2020 in WP (C). No. 22750/2018 (P) of the Honourable High Court of Kerala

2). Section 14 of Kerala Road Safety Authority Act, 2007: Power to order removal of causes of accidents

The Honourable High Court of Kerala as per its order dated 30-01-2020 in WP (C). No. 22750/2018 (P), has directed the Road Safety Commissioner, Kerala Road Safety Authority to issue a General Order in conformity with Section 14 of the Kerala Road Safety Authority Act, 2007 with respect to all unauthorised Boards/Banners/Flags/Posts and such other offensive materials within a period of two weeks from 30-01-2020, and thereafter, to communicate the same to all

**KERALA ROAD SAFETY AUTHORITY**

Established under KRSA Act 2007 by Government of Kerala



authorities, including the State Police Chief without any avoidable delay.

Roadside advertising by placing billboards, banners, posters, hoardings etc. is, by its nature, designed to capture the attention of road users. Driver inattention and distraction are recognised as two of the most critical factors for Road Safety worldwide.

Studies indicate that, overall, drivers tend to behave less safely in the neighborhood of billboards. Specifically, when billboards are present, drivers:

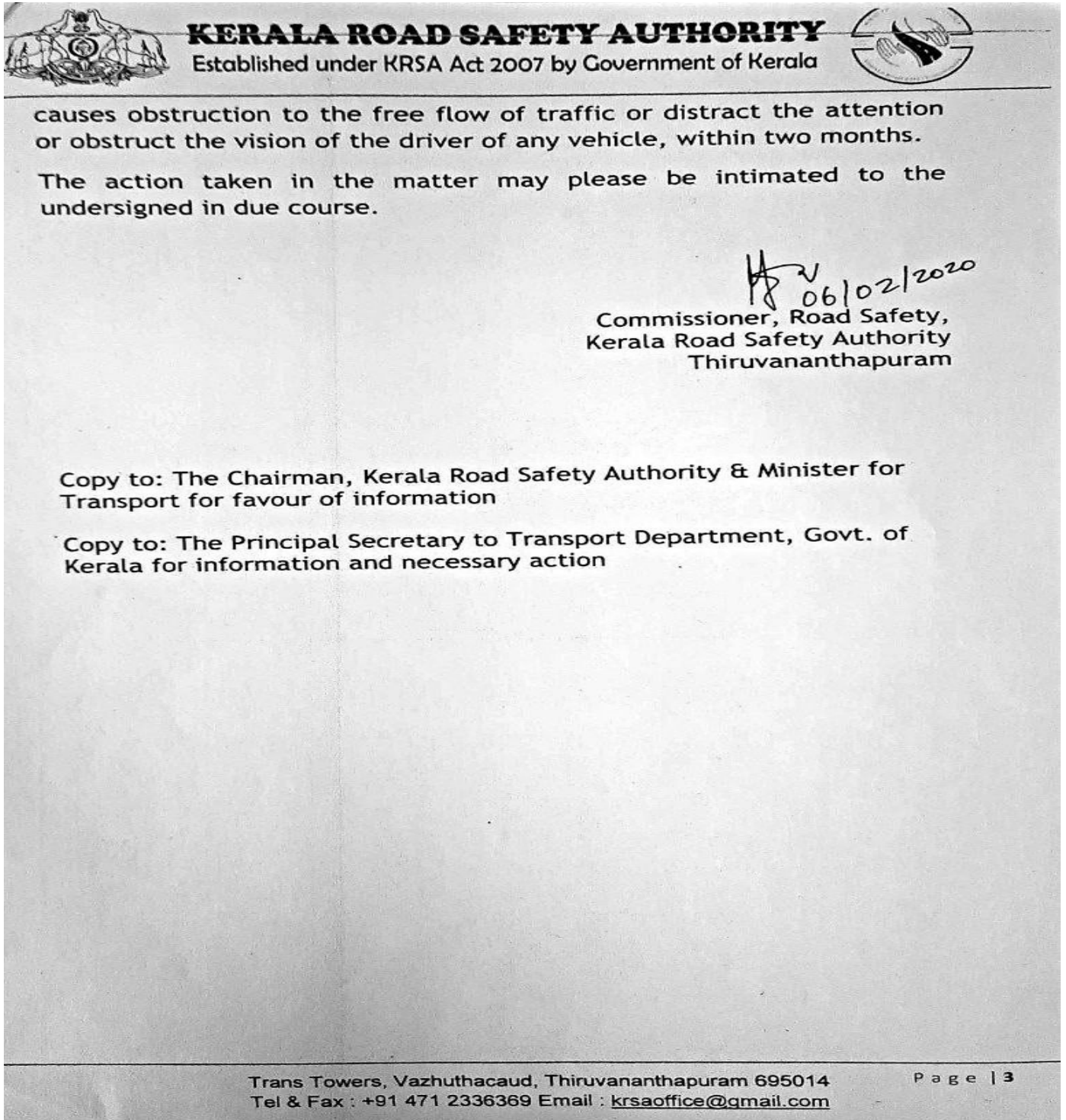
- more often tend to drift out of their lane,
- drive closer to vehicles in front,
- respond later when the vehicle in front suddenly brakes,
- more often overlook road signs, and
- more often forget to use their direction indicator,

causing road traffic crashes.

Further, there were incidents of unexpected or sudden collapse of arches, billboards and their supporting structures due to rain, wind etc. in the country, causing injuries and fatalities to general public.

Therefore, placement or positioning of any unauthorised structures or materials including arches, banners, display boards, hoardings, awnings, poles and other similar structures on a public road, by any person or persons, is likely to cause accidents or causes obstruction to the free flow of traffic or distract the attention or obstruct the vision of the driver of any vehicle. The public road [as per Section 2 (j) of KRSA Act] shall include, any private road to which public have access and also traffic islands, medians and footpaths.

Hence, in exercise of the powers conferred under Section 14 of the Kerala Road Safety Authority Act, 2007, it is hereby directed to take such measures as it considers necessary to remove all those unauthorised structures and materials including arches, banners, display boards, hoardings, awnings, poles and other similar structures placed or positioned on a public road, likely to cause accidents or



22. This was followed by another Order of this Court dated 03.03.2021, directing Election Commission of India, to make sure that all election procedures are in compliance with the directions of this Court and that no unauthorised

Boards/Banners/Hoardings/Flags/Festoons, regardless of their nature, color, or character – be allowed to be placed by any political party in public places, in violation of such mandate.

23. In fact, the afore was fully accepted by the Election Commission of India; and as a matter of fact they incorporated the order of this Court as being part of the “Model Code of Conduct” applicable to all parties; and thus maintained a tight grip, thus saving public spaces from illegal and unauthorised Boards/Banners/Hoardings/Flags/Festoons; as was luculently exhibited in the elections to the Lok Sabha a month or so ago.

24. Unfortunately, even this did not obtain full results and hence on 19.01.2022, another order was issued, commanding Secretaries of all the Local Self Government Institutions to remove existing unauthorized Boards/Banners/Hoardings/Flags/Festoons; with a further direction that no Advertisement Agencies/entity shall install unauthorized Boards/Banners/Hoardings/Flags/Festoons in violation of orders of this court or the Circulars of the Government; adjunctly declaring that any such printed without authorization, will be deemed to be illegal, under the provisions of the Bharatiya Nyaya Sanhita and Land Conservancy Act consequentially leading to cancellation of license of said entities. The relevant portion of the order is extracted below for ease of reference:

“6. In the afore circumstances, I make the following directions in

addition to the ones which have already been issued:

- (a) The Secretaries of the Local Self Government Institutions shall immediately begin a drive to remove all the unauthorized Boards/Banners/Flags which are contrary to the directions of this Court and in violation of the order of the Road Safety Commissioner; and return them to the perpetrators without dumping it in the public waste disposal systems, within a period of thirty days from today. Necessary directions to the various Secretaries of the Local Self Government Institutions shall be issued by the Director of Panchayats and by the Director of Urban Affairs, by way of Circulars/Orders, within a period of five days from today.*
- (b) Every unauthorized Board/Banner/Flag etc. remaining after the afore period as has been already declared by this Court shall be the personal responsibility of the Secretaries of the Local Self Government Institutions, as also the Field Staff thereof, which will invite necessary action as per law.*
- (c) No Advertisement Agency/Entity shall be entitled to fix any unauthorized Board/Banner/Flag or such other in violation of the orders of this Court or contrary to the order of the Road Safety Commissioner; and for this purpose they shall make such installations only after they are provided the necessary sanction from the Secretary of the Local Self Government Institutions, and in no other manner. Every Board/Banner/Flag which shall be printed by the Advertisement Agencies/Printing Presses shall contain their addresses and phone numbers displayed at its lower end, so that necessary action can be taken in the event of any violation found against them by the competent Authorities.*
- (d) Any Boards/Banners/Flags hereinafter printed without the details of the Printing Press/ Advertising Agency as above, will be deemed to be illegal, inviting stringent action, including under the Indian Penal Code and the*

Land Conservancy Act.

(e) Any violation of the directions in (b), (c) and (d) above will also entail the cancellation to the licenses to the Printing Press/ Advertising Agencies, subject to a proper enquiry being completed.”

25. Though some results were thus obtained, the menace has not stopped as is evident from the fact that the learned *Amicus Curiae* kept on filing additional reports, showing continuous violations of the orders of this court. He pointed out that, this is primarily because the Secretaries of the Local Self Government Institutions were either scared of the vested powers, or did not obtain sufficient support from other official agencies. It was, therefore, necessary that they be sufficiently empowered; and with such purpose in mind, this Court issued another Order on 19.10.2022, constituting Committees at various levels, which is reproduced under:

“15. Resultantly, I order that the Secretary to Local Self Government Department issue immediate orders, not later than seven days from today, constituting the afore Committees:

A. The Committee at the level of every Local Self Government Institutions, comprising of:

a. Its Secretary;

b. The Station House Officer of the Police Station/ Police Stations involved;

c. The competent Official of the National Highway Authority of India and

d. The competent Engineer of the PWD.

B. District Monitoring Committee, comprising of:

a. The District Joint Director of the Local Self Government Institution;

b. The Executive Engineer of the PWD;

c. The District Police Chief/Deputy District Police Chief and

d. The Project Director/Competent equivalent Authority of the NHAI.

The Local Self Government Institution level Committees will survey the territories under it at least every two weeks and remove all illegal Boards, Flags, Banners and such other, returning it to the persons who placed the same, along with registration of necessary FIRs, not in the name of the entities, but in the name of persons behind it; and make sure that prosecution and such other steps are launched.

The Committees will further make sure that no new Boards and Flags are erected and that every person who does so are apprehended and brought to justice.

In addition and from now onwards the advertisement Agencies/Entities which erect these Boards, Banners, Flags, Festoons and such other, in violation of the earlier orders of this Court shall immediately be notified of cancellation of their license, and necessary further action in this regard shall be completed.

The proper performance of the Committees at the Local Self Government Institution level will be the responsibility of its Secretaries and if he is to find any deficiency in the same he/she will be at liberty to report it to the District Monitoring Committee.

As far as the District Monitoring Committees are concerned, they will supervise the actions of the Committees at the Local Self

Government Institution level and take necessary action, including by making recommendations under the applicable service law against any Authority who is found failing in the duties entrusted by this Court.

I make it clear that this Court will hold the District Monitoring Committees also responsible for any failure of the respective Local Self Government Institution Committees and the District Joint Director of the Local Self Government Department will be personally held liable for such actions, if it is unable to explain properly.

As far as the National Highways are concerned, Sri. Bidan Chandran the learned Standing Counsel, affirms that except sign boards, nothing else is permitted on the Highways under the statutory scheme. He added that, before any other Board or advertisement is to be kept, the persons/entities have to obtain prior permission and license under the provisions of the Control of National Highways (Land and Traffic Act), 2002”

26. The Government obeyed the above directions fully and brought out an Order constituting a Committee at the District Level, calling it “Monitoring Committee” and one at the level of each Local Self Government. This Order is of great importance and is therefore, below annexed:

LSGD-RC1/262/2022-LSGD

സ.ഉ.(സാധാ) നം.3075/2022/LSGD

സ.ഉ.(സാധാ) നം.3075/2022/LSGD

"രണ്ടാം- മാതൃഭാഷ"



കേരള സർക്കാർ

സംഗ്രഹം



തദ്ദേശ സ്വയംഭരണ വകുപ്പ് - സംസ്ഥാനത്തെ ദേശീയപാതയോരങ്ങളിൽ നിന്നും അനധികൃത ബോർഡുകൾ, ബാനറുകൾ, കൊടിയോരണങ്ങൾ എന്നിവ നീക്കം ചെയ്യുന്നത് - ബഹു. ഹൈക്കോടതി നിർദ്ദേശ പ്രകാരം പ്രാദേശിക-ജില്ലാതല കമ്മിറ്റികൾ രൂപീകരിച്ച് ഉത്തരവ് പുറപ്പെടുവിക്കുന്നു.

തദ്ദേശ സ്വയംഭരണ (ആർ.സി) വകുപ്പ്

സ.ഉ.(സാധാ) നം.3075/2022/LSGD തീയതി, തിരുവനന്തപുരം, 12-12-2022

പരാമർശം:- 1. WP(C) No. 22750/2022 നമ്പർ കേസിലെ ബഹു. ഹൈക്കോടതിയുടെ 19/10/2022 ലെ ഇടക്കാല ഉത്തരവ്.

ഉത്തരവ്

പരാമർശം (1) ബഹു. ഹൈക്കോടതിയുടെ ഉത്തരവിലെ നിർദ്ദേശം ഉൾക്കൊണ്ടുകൊണ്ട് സർക്കാർ വിശദമായി പരിശോധിച്ചതിന്റെ അടിസ്ഥാനത്തിൽ തദ്ദേശ സ്വയംഭരണ സ്ഥാപന മേധാവികളെ കൂടി ഉൾപ്പെടുത്തിക്കൊണ്ട് സംസ്ഥാനത്ത് ദേശീയപാതയോരങ്ങളിൽ അനധികൃത ബോർഡുകൾ, കൊടിയോരണങ്ങൾ, ബാനറുകൾ തുടങ്ങിയവ നിയന്ത്രിക്കുന്നതിനും നീക്കം ചെയ്യുന്നതിനുമായി ചുവടെ ചേർത്തിരിക്കുന്ന പ്രകാരം തദ്ദേശ സ്വയംഭരണ സ്ഥാപന തല കമ്മിറ്റിയും ജില്ലാ മോണിറ്ററിംഗ് കമ്മിറ്റിയും രൂപീകരിച്ച് ഉത്തരവാകുന്നു.

(എ) ചുവടെ ചേർക്കുന്ന അംഗങ്ങളെ ഉൾപ്പെടുത്തി എല്ലാ തദ്ദേശ സ്വയംഭരണ സ്ഥാപനതലത്തിലും കമ്മിറ്റികൾ രൂപീകരിക്കേണ്ടതാണ്.

1. തദ്ദേശ സ്വയംഭരണ സ്ഥാപനങ്ങളുടെ അധ്യക്ഷ/ൻ
2. സ്ഥാപനാധികാരപരിധിയിലെ പോലീസ് സ്റ്റേഷനിലെ / സ്റ്റേഷനുകളിലെ സ്റ്റേഷൻ ഹൗസ് ഓഫീസർ.
3. നാഷണൽ ഹൈവേ അതോറിറ്റി ഓഫ് ഇന്ത്യയുടെ പ്രാദേശിക അധികാരപരിധിയിലെ യോഗ്യനായ ഉദ്യോഗസ്ഥ/ൻ.
4. പൊതുമരാമത്ത് വകുപ്പിലെ അധികാരപരിധിയിലെ യോഗ്യനായ എഞ്ചിനീയർ.
5. തദ്ദേശ സ്വയംഭരണ സ്ഥാപനത്തിലെ സെക്രട്ടറി (കൺവീനർ)

(ബി) ചുവടെ ചേർക്കുന്ന അംഗങ്ങളെ ഉൾപ്പെടുത്തി എല്ലാ ജില്ലാതലത്തിലും മോണിറ്ററിംഗ് കമ്മിറ്റികൾ രൂപീകരിക്കേണ്ടതാണ്.

1. ജില്ലാ പഞ്ചായത്ത് പ്രസിഡന്റ്
2. പൊതുമരാമത്ത് വകുപ്പ് എക്സിക്യൂട്ടീവ് എഞ്ചിനീയർ.

LSGD-RC1/262/2022-LSGD

12/1/22

സ.ഉ.(സാധാ) നം.3075/2022/LSGD

സ.ഉ.(സാധാ) നം.3075/2022/LSGD

3. ജില്ലാ പോലീസ് മേധാവി / ജില്ലാ പോലീസ് ഉപമേധാവി
4. NHAI-യുടെ പ്രോജക്ട് ഡയറക്ടർ / യോഗ്യതയുള്ള തത്തുല്യ അതോറിറ്റി.
5. ജില്ലാ തദ്ദേശ സ്വയംഭരണ വകുപ്പ് ജില്ലാ ജോയിന്റ് ഡയറക്ടർ (കൺവീനർ)

തദ്ദേശ സ്വയംഭരണ സ്ഥാപന തല സമിതി രണ്ടാഴ്ചയിലൊരിക്കൽ അവരുടെ കീഴിലുള്ള പ്രദേശങ്ങൾ സ്ഥല പരിശോധന നടത്തേണ്ടതും നിയമവിരുദ്ധമായ എല്ലാ ബോർഡുകളും കൊടികളും ബാനറുകളും മറ്റും നീക്കം ചെയ്യേണ്ടതും അവ സ്ഥാപിച്ച വ്യക്തികൾക്ക്/സ്ഥാപനങ്ങൾക്ക് തന്നെ മടക്കി നൽകി ആയവ സ്ഥാപിച്ച വ്യക്തികളുടെ/സ്ഥാപനമടമകളുടെ പേരിൽ എഫ്.ഐ.ആർ രജിസ്റ്റർ ചെയ്യേണ്ടതും പ്രോസിക്യൂഷനും മറ്റ് നടപടികളും ആരംഭിച്ചുവെന്ന് ഉറപ്പാക്കേണ്ടതുമാണ്.

പുതിയ ബോർഡുകളും കൊടികളും മറ്റും സ്ഥാപിക്കുന്നില്ലെന്നും അങ്ങനെ ചെയ്യുന്ന എല്ലാവരെയും നിയമത്തിന് മുന്നിൽ കൊണ്ടുവരുന്നതെന്നും കമ്മിറ്റികൾ ഉറപ്പുവരുത്തേണ്ടതാണ്.

കൂടാതെ, ബഹു. ഹൈക്കോടതിയുടെ മുൻ ഉത്തരവുകൾ ലംഘിച്ച്, ബോർഡുകൾ ബാനറുകൾ, പതാകകൾ, തുടങ്ങിയവ സ്ഥാപിക്കുന്ന പരസ്യ ഏജൻസികളുടെയും സ്ഥാപനങ്ങളുടെയും ലൈസൻസ് ഉടമസ്ഥി റദ്ദാക്കുന്നതിന് നോട്ടീസ് നൽകേണ്ടതും ആവശ്യമായ മറ്റ് നടപടികൾ സ്വീകരിക്കേണ്ടതുമാണ്.

തദ്ദേശ സ്വയംഭരണ സ്ഥാപന തലത്തിലുള്ള കമ്മിറ്റികളുടെ പ്രവർത്തനം അതിന്റെ സെക്രട്ടറിമാരുടെ ഉത്തരവാദിത്തമായിരിക്കുന്നതാണ്. അതിൽ എന്തെങ്കിലും പോരായ്മ കണ്ടെത്തിയാൽ ആയത് തദ്ദേശ സ്വയംഭരണ സ്ഥാപന അദ്ധ്യക്ഷന്റെ അറിവോടെ ജില്ലാ മോണിറ്ററിംഗ് കമ്മിറ്റിയെ അറിയിക്കാൻ സെക്രട്ടറിക്ക് ചുമതലയുണ്ട്.

ജില്ലാ മോണിറ്ററിംഗ് കമ്മിറ്റികൾ , തദ്ദേശ സ്വയംഭരണ സ്ഥാപന തല സമിതികളുടെ പ്രവർത്തനങ്ങൾക്ക് മേൽനോട്ടം വഹിക്കേണ്ടതും ബഹു. ഹൈക്കോടതി നിർദ്ദേശിച്ച ചുമതലകളിൽ വീഴ്ച വരുത്തുന്നതായി കണ്ടെത്തിയ ഏതെങ്കിലും അധികാരികൾക്കെതിരെ നിയമപ്രകാരം ശിപാർശകൾ നൽകിക്കൊണ്ട് ആവശ്യമായ നടപടി സ്വീകരിക്കുകയും ചെയ്യേണ്ടതാണ്.

അതത് തദ്ദേശ സ്വയംഭരണ സ്ഥാപന കമ്മിറ്റികളുടെ വീഴ്ചകൾക്ക് ജില്ലാതല മോണിറ്ററിംഗ് കമ്മിറ്റികളും ഉത്തരവാദികളാണ്. ആയത് മോണിറ്ററിംഗ് കമ്മിറ്റി മുമ്പാകെ ശരിയായ രീതിയിൽ വിശദീകരിക്കാൻ കഴിയുന്നില്ലെങ്കിൽ അത്തരം പ്രവർത്തനങ്ങൾക്ക് തദ്ദേശ സ്വയംഭരണ വകുപ്പ് ജില്ലാ ജോയിന്റ് ഡയറക്ടർ ഉത്തരവാദിയായിരിക്കുന്നതാണ്.

ദേശീയ പാതകളെ സംബന്ധിച്ചിടത്തോളം, മറ്റേതെങ്കിലും ബോർഡ് അല്ലെങ്കിൽ പരസ്യം സ്ഥാപിക്കുന്നതിന് മുമ്പ്, 2002 ലെ ദേശീയ പാതകളുടെ നിയന്ത്രണ (ലാൻഡ് ആൻഡ് ട്രാഫിക് ആക്ട്) വ്യവസ്ഥകൾ പ്രകാരം വ്യക്തികൾ/സ്ഥാപനങ്ങൾ മുൻകൂർ അനുമതിയും ലൈസൻസും നേടിയിരിക്കേണ്ടതാണ്.

മേൽപ്പറഞ്ഞ കമ്മിറ്റികളിൽ നാഷണൽ ഹൈവേയുടെ അധികാരികളും ഉൾപ്പെട്ടിരിക്കുന്നതിനാൽ, ദേശീയപാതയോരങ്ങളിൽ നിന്ന് എല്ലാ അനധികൃത ബോർഡുകളും ബാനറുകളും പതാകകളും നീക്കം ചെയ്യാനും ജില്ലാ മോണിറ്ററിംഗ് കമ്മിറ്റിക്ക് ഉചിതമായ രീതിയിൽ റിപ്പോർട്ട് ചെയ്യാനും യുദ്ധകാലാടിസ്ഥാനത്തിൽ നടപടിയെടുക്കേണ്ടതാണ്.

(ഗവർണ്ണറുടെ ഉത്തരവിൻ പ്രകാരം)

ശാശി മുരളീധരൻ ഐ എ എസ്

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അഡീഷണൽ ചീഫ് സെക്രട്ടറി

1. അഡ്വക്കേറ്റ് ജനറൽ, കേരളം.
2. പ്രിൻസിപ്പൽ ഡയറക്ടർ, തദ്ദേശ സ്വയംഭരണ വകുപ്പ്, തിരുവനന്തപുരം.
3. ഡയറക്ടർ, തദ്ദേശ സ്വയംഭരണ (റൂറൽ) വകുപ്പ്, തിരുവനന്തപുരം.
4. ഡയറക്ടർ, തദ്ദേശ സ്വയംഭരണ (അർബൻ) വകുപ്പ്, തിരുവനന്തപുരം.
5. എല്ലാ തദ്ദേശ സ്വയംഭരണ സ്ഥാപനങ്ങളിലെയും സെക്രട്ടറിമാർക്ക് (പ്രിൻസിപ്പൽ ഡയറക്ടർ മുഖേന)
6. സംസ്ഥാന പോലീസ് മേധാവി, തിരുവനന്തപുരം.
7. ചീഫ് എഞ്ചിനീയർ, പൊതുമരാമത്ത് വകുപ്പ്, തിരുവനന്തപുരം.
8. പ്രോജക്ട് എഞ്ചിനീയർ, NHAI, കേരള റീജിയൻ.
9. എല്ലാ ജില്ലാ പോലീസ് മേധാവികൾക്കും സ്റ്റേഷൻ ഹൗസ് ഓഫീസർമാർക്കും .
(സംസ്ഥാന പോലീസ് മേധാവി മുഖേന)
10. പ്രിൻസിപ്പൽ അക്കൗണ്ടന്റ് ജനറൽ (ഓഡിറ്റ്/എ&ഇ) കേരള, തിരുവനന്തപുരം.
11. അഡീഷണൽ ചീഫ് സെക്രട്ടറി, ആഭ്യന്തര വകുപ്പ്.
12. പ്രിൻസിപ്പൽ സെക്രട്ടറി, പൊതുമരാമത്ത് വകുപ്പ്.
13. ഐ. & പി.ആർ. വെബ് ന്യൂ മീഡിയ.
14. കരുതൽ ഫയൽ / ഓഫീസ് പകർപ്പ് (ആർസി1/262/2022/തസ്വഭവ)

ഉത്തരവിൻ പ്രകാരം

സെക്ഷൻ ഓഫീസർ

27. A subsequent Order was issued by the Government on 31.12.2022 amending the previous Government Order dated 12.12.2022 which changed the term “pathways along the National Highways in the State” to “Pathways in the State”.

28. While so, the Government issued another Government Order dated 06.06.2023, recording that a meeting had been convened of all the Departments of the Government, chaired by the Hon’ble Chief Minister, Kerala, and attended by the learned Advocate General, the Chief Secretary and Law Secretary,

recommending that the statutes/rules relevant to each of the Departments be amended so as to cause full implementation of the various orders of this Court. It is also mentioned therein that the co-ordination of the action for removal of violation from highways under the NHAI shall be with the Secretary, Public Works Department (PWD). This order has great relevance to the cause because, for the first time, the Government of Kerala recognised that statutory amendments are required to end the menace of illegal boards/flags/festoons and, therefore, is extracted below:

സം.ഉ.(സാധാ) നം.1173/2023/LSGD

"ഭരണഭാഷാ മാതൃഭാഷ"



കേരള സർക്കാർ

സംഗ്രഹം



തദ്ദേശസ്വയംഭരണവകുപ്പ് - WP (C) 22750/2018- അനധികൃത കൊടിമരങ്ങളും തോരണങ്ങളും ഏജൻസികളും കൊടിക്കറകളും നീക്കം ചെയ്യുന്നത് - നാഷണൽ ഹൈവേ അതോറിറ്റി ഓഫ് ഇന്ത്യ തദ്ദേശ സ്വയംഭരണ, റവന്യൂ പൊതുമരാമത്ത് വകുപ്പുകളുമായി ബന്ധപ്പെട്ടുവരുന്ന ചട്ടങ്ങളിൽ പ്രസ്തുത വകുപ്പുകൾ തന്നെ ഭേദഗതി വരുത്തേണ്ടതാണെന്ന് വ്യക്തത വരുത്തി ഉത്തരവ് പുറപ്പെടുവിക്കുന്നു.

തദ്ദേശ സ്വയംഭരണ (ആർ.സി) വകുപ്പ്

സം.ഉ.(സാധാ) നം.1173/2023/LSGD തീയതി: തിരുവനന്തപുരം, 06-06-2023

- പരാമർശം:-
1. ബഹു. ഹൈക്കോടതിയുടെ WP (C) 22750/2018 നമ്പർ റിട്ട് പെറ്റീഷനിൽ 22.03.2022 ലെ ഇടക്കാല ഉത്തരവ്.
 2. ബഹു. മുഖ്യമന്ത്രിയുടെ അദ്ധ്യക്ഷതയിൽ 14.12.2022 ന് ചേർന്ന യോഗത്തിന്റെ നടപടിക്കുറിപ്പ്.

ഉത്തരവ്

സംസ്ഥാനത്ത് പാതയോരങ്ങളിൽ വഴിയന്ത്രക്കാർക്കും വാഹനയാന്ത്രക്കാർക്കും മാർഗ്ഗതടസ്സം സൃഷ്ടിക്കുകയാണ് അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ള എല്ലാ കൊടിമരങ്ങളും തോരണങ്ങളും ഏജൻസികളും കൊടിക്കറകളും അടിയന്തിരമായി നീക്കം ചെയ്യണമെന്ന് ബഹു. കോടതി പരാമർശം (1) പ്രകാരം നിർദ്ദേശം നൽകിയിരുന്നു.

പ്രസ്തുത നിർദ്ദേശം നടപ്പിലാക്കുന്നതുമായി ബന്ധപ്പെട്ട് ബഹു. മുഖ്യമന്ത്രിയുടെ അദ്ധ്യക്ഷതയിൽ ബഹു. തദ്ദേശ സ്വയംഭരണവും എക്സൈസും വകുപ്പ് മന്ത്രി, ചീഫ് സെക്രട്ടറി, തദ്ദേശ സ്വയംഭരണവകുപ്പ് അഡീഷണൽ ചീഫ് സെക്രട്ടറി, നിയമ വകുപ്പ് സെക്രട്ടറി, അഡ്വക്കേറ്റ് ജനറൽ, ഡി.ജി.പി എന്നിവരുടെ സാന്നിധ്യത്തിൽ 14.12.2022 ന് ഒരു യോഗം ചേരുകയുണ്ടായി.

പ്രസ്തുത യോഗത്തിൽ ഇത് സംബന്ധിച്ച് ബന്ധപ്പെട്ട വകുപ്പുകളുടെ നിയന്ത്രണത്തിലുള്ള നിയമത്തിൽ ഭേദഗതി ചെയ്യാവുന്ന ചട്ടങ്ങളിൽ ഭേദഗതി വരുത്തണം എന്ന് പരാമർശം (2) പ്രകാരം തീരുമാനിച്ചിരുന്നു.

മേൽ തീരുമാനത്തിന്റെ അടിസ്ഥാനത്തിൽ സംസ്ഥാനത്തെ നാഷണൽ ഹൈവേ

സ.ഉ.(സ്വാധാ) നം.1173/2023/LSGB

അതോറിറ്റി ഓഫ് ഇന്ത്യ(NHAI)യുടെ അധികാരപരിധിയിൽ സ്ഥാപിച്ചിരിക്കുന്ന അനധികൃത കൊടികളെയും തോരണങ്ങളെയും ഫ്ലാഗുകളെയും നീക്കം ചെയ്യുന്നതിന് ബഹു.ഹൈക്കോടതി നിർദ്ദേശങ്ങൾ നടപ്പിലാക്കാനുള്ള നിയന്ത്രണ മോൾഡങ്ങൾ സ്വീകരിക്കേണ്ടതാണ്.മേൽപ്രവർത്തനങ്ങളുടെ ഏകോപനച്ചുമതല പൊതുമരാമത്തു വകുപ്പ് നിർവ്വഹിക്കേണ്ടതാണ്.

തദ്ദേശ സ്വയംഭരണ, റവന്യൂ പൊതുമരാമത്ത്, ഗതാഗതം, വ്യവസായം എന്നീ വകുപ്പുകളുടെ അധീനതയിലുള്ള അനധികൃത ഫ്ലാഗ് ബോർഡുകൾ, കൊടികൾ , തോരണങ്ങൾ, കൊടിക്കറകൾ, പരസ്യ പ്രദർശന നിർമ്മിതികൾ, മുതലായവ നീക്കം ചെയ്യുന്നതിന് അതാത് വകുപ്പുകളുടെ നിയന്ത്രണത്തിൽ വരുന്ന വിഷയങ്ങളിൽ ബന്ധപ്പെട്ട നിയമ/ചട്ടങ്ങളിൽ പ്രസ്തുത വകുപ്പുകൾ ഭേദഗതി വരുത്തേണ്ടതാണെന്ന് നിർദ്ദേശിച്ച് ഉത്തരവ് പുറപ്പെടുവിക്കുന്നു.

(ഗവർണ്ണറുടെ ഉത്തരവിൻ പ്രകാരം)
ശാസന മൂർത്തിയൻ ഐ എ എസ്
അഡീഷണൽ ചീഫ് സെക്രട്ടറി

പ്രിൻസിപ്പൽ ഡയറക്ടർ, തദ്ദേശ സ്വയംഭരണ വകുപ്പ് തിരുവനന്തപുരം.
തദ്ദേശ സ്വയംഭരണ (റൂറൽ) വകുപ്പ് തിരുവനന്തപുരം.
തദ്ദേശ സ്വയംഭരണ (അർബൻ) വകുപ്പ് തിരുവനന്തപുരം.
ഡയറക്ടർ, നാഷണൽ ഹൈവേ അതോറിറ്റി ഓഫ് ഇന്ത്യ
അഡ്വക്കേറ്റ് ജനറൽ, എറണാകുളം
സ്റ്റേറ്റ് പോലീസ് ചീഫ്, തിരുവനന്തപുരം.
റവന്യൂ വകുപ്പ്
പൊതുമരാമത്ത് വകുപ്പ്
ഓഫീസ് കോപ്പി / കരുതൽ ഫയൽ

ഉത്തരവിൻ പ്രകാരം

സെക്ഷൻ ഓഫീസർ

29. In the meanwhile, the problem of disposal of the illegal boards, banners and hoardings so removed, also emerged. On 08.06.2023, on account of the oncoming monsoons, lack of space and the factum of overwhelmed Public Waste Disposal Systems, the question as to how the illegal Boards/Banners/Hoardings/Flags/Festoons etc. are to be finally disposed of, after the designated Committees removed them, arose. Even though this court, in its

earlier orders, had directed the unauthorised Boards/Banners/Hoardings/Flags/Festoons to be removed and returned to the persons/entities which installed it, the method to tackle the same had to be specified. Hence, this Court on 08.06.2023 issued the following order:

“6. Therefore, in order to ensure that the people of this State are not put to any deleterious consequences on account of the oncoming monsoons, I deem it apposite to issue the following directions which are more in a manner of reiteration and clarification than new, since the earlier orders issued encompasses them fully.

- a) The Committees designated by this Court shall forthwith remove all boards/flags/festoons and place them in an area to be identified as a 'holding area'.*
- b) The Committees shall abide by the earlier orders of this Court regarding the initiation of criminal action against the perpetration and all such remains unaltered.*
- c) On the boards/flags/festoons being so removed to the 'holding area', the Secretary of the Local Self Government Institutions will issue notices to the persons/entities which installed them, granting them not more than seven days' time to remove the same, after remitting charges expended for its removal and handling.*
- d) If the afore notices are not complied with by the persons/entities concerned, necessary action for prosecution and recovery of amounts for destruction of the boards/flags/festoons in a scientific manner shall be initiated and concluded against them.*
- e) The afore shall also be accompanied by a notice to the Printer/Advertisement Agency, whose names*

and addresses must be ascertained through a proper enquiry; and action taken for cancellation of their license, especially in cases where the boards/flags/festoons not contain their names, in spite of the earlier directions of this Court.

- f) The Principal Secretary of the Local Self Government Institutions of the State of Kerala will issue a Circular to all the Secretaries of the Local Self Government Institutions containing the afore directions, within a period of three days from the date of receipt of a copy of this order.*
- g) The Principal Secretary of the Local Self Government Institutions will also file an affidavit before this Court explaining the action taken pursuant to these directions and will closely monitor the process of removal and return of the boards/flags/festoons through appropriate agencies/officers, as it may deem fit, by the next posting date.”*

30. The Government issued their circular dated 19.06.2023, incorporating all the above directions. Subsequently, on 31.10.2023, Smt.Sarada Muraleedharan, then Additional Chief Secretary, informed this court that, as per the Kerala Municipality (Erection of Arches and Setting up of Advertisement Boards in Public Streets and in Public Places) Rules, 1999, the penalty that can be imposed against each unauthorised board, or such structure, on any public spaces and streets, is Rs.5000/-; and that the Government has ordered to impose the same on each such unauthorised board/installations. This was recorded in the order dated 31.10.2023 and the following directions issued:

“I, therefore, direct the committee constituted by this Court; and which are governed by the consequent of the Government, bearing No. GO (Rt) 3075/2022/LSGD dated 12.12.2022, to immediately remove every board installed in violation of the orders of this Court from across the State, imposing the maximum penalty of Rs.5,000/- per board on each of them, in addition to the expenses for its removal and initiation of prosecution. Even though this Court had given sufficient leeway and time for removal of the boards by the persons who installed them, the factum of them still continuing the streets would clearly show lack of respect for law by these persons. Normally, therefore, they do not require to be given any lenitude but, because this Court is now passing an affirmative order as afore, I direct the Committees to start action in terms of above directions after a period of seven days from today, so as to enable every person who has installed the boards illegally to remove them voluntarily and on their own volition, so as to avert the rigor of penalty and prosecution, if they are so interested.”

31. As admitted by the respondents, the unauthorised installations also violate various other legal provisions, including Sections 268 and 278 of the Indian Penal Code, 1860; Section 3 of the Prevention of Damage to Public Property Act, 1984; the Kerala Municipality Act; Kerala Panchayat Raj Act and the Plastic Waste (Management and Handling) Rules. These laws mandate local bodies to remove unauthorized hoardings and advertisement boards within their jurisdiction and manage the containment of residual waste. However, due to lax enforcement, the problem continued to persist.

32. On 4.12.24, the learned Amicus Curiae - Sri.Harish Vasudevan, brought my attention to a report dated 3.12.2024 pointing out that the violations of the orders

of this Court were continuing unabated and the order on that day was issued as under:

“The learned Amicus Curiae – Sri.Harish Vasudevan, has filed a report dated 03.12.2024. He bewails that the violations are still continuing unabated.

- 2. This Court is also aware, but there is hardly anything that can be done if the Official Machinery continues to be either deliberately or otherwise indifferent or inactive.*
- 3. Sri.Shyam Prashanth – learned Government Pleader, submitted that the State is committed to rid our State of all unauthorized boards, flags, festoons etc. He reiterated that the steps and measures have been taken; but added that, finally, it is the Local Self Government Institutions (LSGIs) which are to do it.*
- 4. I am, therefore, sure that this Court will have to now interact with the Secretary, Department of Local Self Government Institutions of the Government of Kerala because, on an earlier occasion, the Officer had given very valuable suggestions, but many of which appear to be disregarded by the competent Authorities.*
- 5. Be that as it may, as this Court has already declared is one of the earliest orders in these Writ Petitions, it is the Secretaries of the LSGIs who are finally responsible - not only for the removal of the boards but also for the collection of the fines, registration of the FIRs, and such others. The Committees at the various levels were constituted by this Court only because many of them said that they were scared of implementing orders on account of political and other pressure. This is not to mean that they are free of their obligations.*
- 6. Since, even today, the impression given is that the Secretaries of the LSGIs are scared to act on being taken to task by vested interests, it is necessary that this Court also drive in the fear of law into them and make them realise that this is more powerful.*

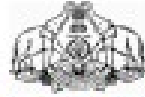
Therefore, I issue the following directions today:

- (a) I record the submissions of Sri.Shyam Prashanth, that the Secretary, Department of LSGIs, Government of Kerala, will join this Court online at 4 p.m. on 11.12.2024 for interaction.*
- (b) I direct the Secretaries of every LSGI to ensure that every unauthorized board, flag, festoon etc. is removed within a period of ten days from today.*

- (c) *I reiterate that every unauthorized board, flag, festoon - which is still remaining on the public streets - will be the personal responsibility of the Secretaries; and this Court will be compelled to collect fines from them personally. They are, of course, at liberty to set up squads for the removal of them, as to have the designated persons in the local areas, including the Field Staff, to ensure that all violations are removed.*
- (d) *I record that the learned Government Pleader has offered to inform every Secretary of the LSGIs the above directions through a circular to be issued by the competent Authority of the Government within a period of three days from today. This shall be ensured and the same produced before this Court by the next posting date. I also direct that all such circulars be brought to the notice of the Secretary, LSGIs by e-mails and such other expedient methods.*
- (e) *If, during the discharge of any action as per these directions, any Secretary or staff of the LSGIs are to be threatened by any person or entity, it shall be the responsibility of the Police to ensure that they are given protection and such persons are taken to task under the warrant of law to the fullest extent.*
- (f) *I direct the learned State Police Chief to ensure necessary instructions in this regard are given to every Police Station within a period of three days through appropriate circulars/instructions.”*

It, therefore, became apparent that this Court was enjoined to act more strongly than ever before. This led to the Government issuing two circulars dated 10.12.2024 and 12.12.2024 respectively; which are reproduced hereunder.

"ഭരണഭാഷ- മാതൃഭാഷ"



കേരള സർക്കാർ

നം. ആർ.സി1/262/2022-തസ്യാഭവ

തദ്ദേശ സ്വയംഭരണ (ആർ.സി) വകുപ്പ്

തീരുവനന്തപുരം, തീയതി: 10-12-2024

സർക്കുലർ

വിഷയം:- തസ്യാഭവ - അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ള പ്ലക്സ് ബോർഡുകൾ, ബാനറുകൾ, കൊടിയോരണങ്ങൾ - നീക്കം ചെയ്യുന്നത് - സംബന്ധിച്ച്.

സൂചന:- 1) WP(C) No. 1671/2021 നമ്പർ ഹർജിയിന്മേൽ 02.12.2021 തീയതിയിൽ ബഹു. ഹൈക്കോടതി പുറപ്പെടുവിച്ച വിധിന്മുഖം.

2) മുഖ്യമന്ത്രിയുടെ അദ്ധ്യക്ഷതയിൽ 20.03.2022 ൽ കൂടിയ സർവ്വകക്ഷിയോഗ തീരുമാനം.

3) WP(C) No. 22750/2018, WP(C) No. 25784/2018, WP(C) No. 42574/2018 & WP(C) No. 27642/2021 എന്നീ റിട്ട് ഹർജികളിന്മേൽ 22.03.2022 തീയതിയിൽ ബഹു. ഹൈക്കോടതി പുറപ്പെടുവിച്ച വിധിന്മുഖം.

4) WP(C) No. 1671/2021 നമ്പർ ഹർജിയിന്മേൽ 22.06.2022 തീയതിയിൽ പുറപ്പെടുവിച്ച ഇടക്കാല ഉത്തരവ്.

5) 06.05.2022, 06.07.2022 തീയതികളിലെ ഇതര നമ്പർ സർക്കുലറുകൾ.

6) WP(C) No. 1671/2021 നമ്പർ ഹർജിയിന്മേൽ 07.07.2022 തീയതിയിൽ പുറപ്പെടുവിച്ച ഇടക്കാല ഉത്തരവ്.

7) 02.08.2022 തീയതിയിലെ RC2/315/2022-LSGD നമ്പർ സർക്കുലർ.

8) WP(C) No. 22750/2022 കേസിലെ ബഹു. ഹൈക്കോടതിയുടെ 19.10.2022 ലെ ഇടക്കാല ഉത്തരവ്.

- 9) സ.ഉ (സാധാ) നം. 3075/2022/തസ്വഭവ തീയതി: 12.12.2022.
- 10) ബഹു. മുഖ്യമന്ത്രിയുടെ അദ്ധ്യക്ഷതയിൽ 14.12.2022 ന് ചേർന്ന യോഗത്തിന്റെ നടപടിക്കുറിപ്പ്.
- 11) സ.ഉ (സാധാ) നം. 1173/2023/തസ്വഭവ തീയതി : 06.06.2023.
- 12) WP(C) No. 22750/2018 നമ്പർ കേസിലെയും അനുബന്ധ കേസുകളിലെയും ബഹു. ഹൈക്കോടതിയുടെ 08.06.2023 തീയതിയിലെ ഉത്തരവ്.
- 13) 19.06.2023 ലെ ഇതേ നമ്പർ സർക്കുലർ.
- 14) WP (C) No. 22750/2018 നമ്പർ കേസും അനുബന്ധ കേസുകളും പരിഗണിച്ചുകൊണ്ട് ബഹു. കോടതി പുറപ്പെടുവിച്ച 04/12/2024 ലെ ഉത്തരവ്

സംസ്ഥാനത്തെ പാതേയാരങ്ങളിലും കാൽനടയാത്രക്കാർ ഗതാഗതത്തിനുപയോഗിക്കുന്ന ഫുട്പാത്ത് ഏരിയ, ഹാൻഡ് റെയ്ഡുകൾ എന്നിവിടങ്ങളിലും റോഡുകളുടെ സെന്റർ ലീഡിയൻ, ടാപിക് ഐലന്റ് എന്നിവിടങ്ങളിലും അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ള കൊടികൾ, തോരണങ്ങൾ, കൊടികൾ, പ്ലാക്കുകൾ, പരസ്യ ബോർഡുകൾ എന്നിവ നീക്കം ചെയ്യുന്നത് സംബന്ധിച്ച് സൂചന (3), (4) - ലെ ബഹു. ഹൈക്കോടതി നിർദ്ദേശാനുസരണം സർക്കാർ സൂചന (5) പ്രകാരം മാർഗ്ഗനിർദ്ദേശങ്ങൾ പുറപ്പെടുവിച്ചിരുന്നു.

സൂചന (6) ലെ ബഹു. ഹൈക്കോടതി നിർദ്ദേശ പ്രകാരം തദ്ദേശ സ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാർ കർശനമായി പാലിക്കേണ്ട മാർഗ്ഗനിർദ്ദേശങ്ങൾ സൂചന (7) പ്രകാരം സർക്കാർ പുറപ്പെടുവിച്ചിരുന്നു.

സൂചന (8) ലെ ബഹു. ഹൈക്കോടതിയുടെ ഉത്തരവ് പ്രകാരം സംസ്ഥാനത്തെ പാതേയാരങ്ങളിൽ നിന്നും അനധികൃത ബോർഡുകൾ, ബാനറുകൾ, കൊടികൾ തോരണങ്ങൾ എന്നിവ നീക്കം ചെയ്യുന്നതിന് തദ്ദേശ സ്ഥാപനതലത്തിൽ പ്രാദേശിക കമ്മിറ്റികളും അവ യഥാക്രമം നടപ്പിലാക്കുന്നുണ്ട് എന്ന് നിരീക്ഷിക്കുന്നതിനായി ജില്ലാ തല മോണിറ്ററിംഗ് കമ്മിറ്റികളും രൂപീകരിച്ചുകൊണ്ട് സൂചന (9) പ്രകാരം ഉത്തരവ് പുറപ്പെടുവിച്ചിരുന്നു. കൂടാതെ

അനധികൃത കൊടീതാരണങ്ങളും ഫ്ലക്സ് ബോർഡുകളും നീക്കം ചെയ്യുന്നതിന് NHAI, തദ്ദേശ സ്വയംഭരണ, റവന്യൂ പൊതുമരാമത്ത് എന്നീ വകുപ്പുകളുമായി ബന്ധപ്പെട്ട് വരുന്ന ചട്ടങ്ങളിൽ പ്രസ്തുത വകുപ്പുകൾ തന്നെ ആവശ്യമായ ഭേദഗതി വരുത്തേണ്ടതാണെന്ന നിർദ്ദേശം നൽകി സൂചന (11) പ്രകാരം ഉത്തരവായിരുന്നു.

സൂചന (12) ലെ ബഹു. ഹൈക്കോടതിയുടെ ഉത്തരവ് പ്രകാരം സംസ്ഥാനത്തെ പാതേയാരങ്ങളിൽ നിന്നും അനധികൃത ബോർഡുകൾ, ബാനറുകൾ, കൊടീതാരണങ്ങൾ എന്നിവ നീക്കം ചെയ്യുന്നതിന് സൂചന (13) പ്രകാരം സർക്കുലർ പുറപ്പെടുവിച്ചിരുന്നു.

മേൽ നടപടികൾ നിരീക്ഷിക്കുന്നതിന് ബഹു. ഹൈക്കോടതി Amicus curiae െയ ചുമതലപ്പെടുത്തുകയും Amicus curiae യുടെ റിപ്പോർട്ടിന്റെ അടിസ്ഥാനത്തിൽ ബഹു. ഹൈക്കോടതി സൂചന (14) പ്രകാരമുള്ള ഉത്തരവ് പുറപ്പെടുവിക്കുകയും ഉണ്ടായി. പ്രസ്തുത ഉത്തരവിലെ നിർദ്ദേശത്തിന്റെ അടിസ്ഥാനത്തിൽ താഴെ കാണും പ്രകാരമുള്ള നിർദ്ദേശങ്ങൾ പുറപ്പെടുവിക്കുന്നു.

- എല്ലാ തദ്ദേശ സ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാരും, തങ്ങളുടെ അധികാര പരിധിയിൽ അനധികൃതമായി സ്ഥാപിക്കപ്പെട്ടിട്ടുള്ള എല്ലാ ഫ്ലക്സ് ബോർഡുകളും ബാനറുകളും കൊടീതാരണങ്ങളും സൂചന 14 പ്രകാരമുള്ള ബഹു. ഹൈക്കോടതി ഉത്തരവ് തീയതി മുതൽ 10 ദിവസങ്ങൾക്കുള്ളിൽ നീക്കം ചെയ്ത് എന്ന് ഉറപ്പാക്കേണ്ടതാണ്. അനധികൃതമായി സ്ഥാപിക്കപ്പെട്ടിട്ടുള്ള എല്ലാ ഫ്ലക്സ് ബോർഡുകളും ബാനറുകളും കൊടീതാരണങ്ങളും നീക്കം ചെയ്യുന്നത് തദ്ദേശ സ്വയംഭരണ സെക്രട്ടറിമാരുടെ വ്യക്തിപരമായ ഉത്തരവാദിത്തമാണ്. അപ്രകാരം നീക്കം ചെയ്യാത്തവയ്ക്ക് തദ്ദേശ സ്വയംഭരണ സെക്രട്ടറിമാർക്ക് കോടതി ഉത്തരവിൻ പ്രകാരം പിഴ ചുമത്തുന്നതാണ്.
- ആയുവ നീക്കം ചെയ്യുന്ന അവസരത്തിൽ ആവശ്യമെങ്കിൽ പോലീസ് സഹായം തേടേണ്ടതാണ്. ഇക്കാര്യത്തിൽ സംസ്ഥാന പോലീസ് മേധാവി എല്ലാ ജില്ലാ പോലീസ് മേധാവികൾക്കും സ്പെഷൽ ഹൗസ് ഓഫീസർമാർക്കും അഭിയന്തിര നിർദ്ദേശങ്ങളും സഹായങ്ങളും നൽകേണ്ടതാണ്.

- നീക്കം ചെയ്ത എല്ലാ പ്ലാറ്റ് ബോർഡുകളും ബാനറുകളും കൊടിയേറ്റത്തോടെയും ശാസ്ത്രീയമായി സംസ്കരിക്കുന്നതിനു തദ്ദേശ സ്വയംഭരണ സെക്രട്ടറിമാർ പ്രത്യേകം ശ്രദ്ധിക്കേണ്ടതാണ്.

ഡോ. ഷർമിള മേരി ജോസഫ്
പ്രിൻസിപ്പൽ സെക്രട്ടറി

പകർപ്പ്

അഡ്വക്കേറ്റ് ജനറൽ, എറണാകുളം (ആഭ്യന്തര സഹിതം)

ഓഫീസർ ഓൺ സ്പെഷ്യൽ ഡ്യൂട്ടി റൂ ചീഫ് സെക്രട്ടറി, കേരള

ആഭ്യന്തര വകുപ്പ് അഡീഷണൽ ചീഫ് സെക്രട്ടറിയുടെ പേരിൽ
അസിസ്റ്റന്റ്

ഗതാഗത വകുപ്പ് സെക്രട്ടറിയുടെ സി.എ

റവന്യ വകുപ്പ്

എല്ലാ ജില്ലാ കളക്ടർമാർക്കും

എല്ലാ ജില്ലാ പോലീസ് മേധാവികൾക്കും (സിറ്റി/ റൂറൽ)

പ്രിൻസിപ്പൽ ഡയറക്ടർ, തദ്ദേശ സ്വയംഭരണ വകുപ്പ്, തിരുവനന്തപുരം.

എല്ലാ തദ്ദേശ സ്വയംഭരണ സെക്രട്ടറിമാർക്കും (പഞ്ചായത്ത്/നഗരകാര
ഡയറക്ടർ മുഖേന)

ട്രാൻസ്പോർട്ട് കമ്മീഷണർ, തിരുവനന്തപുരം.

കമ്മീഷണർ, കേരള റോഡ് സേഫ്റ്റി അതോറിറ്റി, തിരുവനന്തപുരം.

എക്സിക്യൂട്ടീവ് ഡയറക്ടർ, ഇൻഫർമേഷൻ കേരള മിഷൻ, തിരുവനന്തപുരം.

ഇൻഫർമേഷൻ & പബ്ലിക് റിലേഷൻസ് (വെബ് & സ്മി മീഡിയ) വകുപ്പ്,

(സൂചന 14 ലെ ബഹു ഹൈക്കോടതിയുടെ ഉത്തരവിന്റെ പകർപ്പ് സഹിതം)

കരുതൽ ഫയൽ/ഓഫീസ് കോപ്പി (LSGD-RC1/262/2022-LSGD)

ഉത്തരവിൻ പ്രകാരം

Signed by
Pradeesh M.

സെക്ഷൻ ഓഫീസർ.

Date: 10-12-2024 16:29:25

"അനേകം മാതൃഭാഷ"



കേരള സർക്കാർ

നം. ആർ.സി/262/2022-തസ്വഭവ
തദ്ദേശ സ്വയംഭരണ (ആർ.സി) വകുപ്പ്
തീരുവനന്തപുരം, തീയതി: 12-12-2024

സർക്കുലർ

വിഷയം:- തസ്വഭവ - അന്യകൃതമായി സ്ഥാപിച്ചിട്ടുള്ള ഫസ്റ്റ് ബോർഡുകൾ, ബാനറുകൾ, കൊടിയേറ്റങ്ങൾ - നീക്കം ചെയ്യുന്നത് - സംബന്ധിച്ച്

- സൂചന:-
- 1) WP(C) No. 1671/2021 നമ്പർ ഹർജിയിന്മേൽ 02.12.2021തീയതിയിൽ ബഹു. ഹൈക്കോടതി പുറപ്പെടുവിച്ച വിധിന്യായം.
 - 2) മുഖ്യമന്ത്രിയുടെ അദ്ധ്യക്ഷതയിൽ 20.03.2022 ൽ കൂടിയ സർവ്വകക്ഷിയോഗ തീരുമാനം.
 - 3) WP(C) No. 22750/2018, WP(C) No. 25784/2018, WP(C) No. 42574/2018 & WP(C) No. 27642/2021 എന്നീ റിട്ട് ഹർജികളിന്മേൽ 22.03.2022 തീയതിയിൽ ബഹു. ഹൈക്കോടതി പുറപ്പെടുവിച്ച വിധിന്യായം.
 - 4) WP(C) No. 1671/2021 നമ്പർ ഹർജിയിന്മേൽ 22.06.2022 തീയതിയിൽ പുറപ്പെടുവിച്ച ഇടക്കാല ഉത്തരവ്.
 - 5) 06.05.2022, 05.07.2022 തീയതികളിലെ ഇതേ നമ്പർ സർക്കുലറുകൾ
 - 6) WP(C) No. 1671/2021 നമ്പർ ഹർജിയിന്മേൽ 07.07.2022 തീയതിയിൽ പുറപ്പെടുവിച്ച ഇടക്കാല ഉത്തരവ്.
 - 7) 02.08.2022 തീയതിയിലെ RC2/315/2022-LSGD നമ്പർ സർക്കുലർ.
 - 8) WP(C) No. 22750/2018 കേസിലെ ബഹു. ഹൈക്കോടതിയുടെ 19.10.2022 ലെ ഇടക്കാല ഉത്തരവ്.
 - 9) സ.ഉ (സാധാ) നം. 3075/2022/തസ്വഭവ തീയതി: 12.12.2022. 10) ബഹു. മുഖ്യമന്ത്രിയുടെ അദ്ധ്യക്ഷതയിൽ 14.12.2022 ന് ചേർന്ന യോഗത്തിന്റെ നടപടിക്കുറിപ്പ്.
 - 11) സ.ഉ (സാധാ) നം. 1173/2023/തസ്വഭവ തീയതി : 06.06.2023.
 - 12) WP(C) No. 22750/2018 നമ്പർ കേസിലെയും അനുബന്ധകേസുകളിലെയും ബഹു. ഹൈക്കോടതിയുടെ 08.06.2023 തീയതിയിലെ ഉത്തരവ്.

13) 19.06.2023 ലെ ഇതേ നമ്പർ സർക്കുലർ.

14) WP(C) No. 22750/2018 നമ്പർ കേസും അനുബന്ധകേസുകളും പരിഗണിച്ചുകൊണ്ട് ബഹു. കോടതി പുറപ്പെടുവിച്ച 04/12/2024 ലെ ഉത്തരവ്

15) 10.12.2024 ലെ ഇതേ നമ്പർ സർക്കുലർ.

16) 11.12.2024 ന് ബഹു. ഹൈക്കോടതി തദ്ദേശ സ്വയംഭരണ പ്രിൻസിപ്പൽ സെക്രട്ടറിയുമായി നടത്തിയ ഹിയറിംഗ് (ഓൺലൈൻ)

സംസ്ഥാനത്തെ പാതയോരങ്ങളിലും കാൽനടയാത്രക്കാർ ഗതാഗതത്തിനുപയോഗിക്കുന്ന ഫുട്പാത്ത് ഏരിയ, ഹാൻഡ് റെയിലുകൾ എന്നിവിടങ്ങളിലും റോഡുകളുടെ സെന്റർ മീഡിയൻ, ടാപിക് ഐലന്റ് എന്നിവിടങ്ങളിലും അനധികൃതമായി സ്ഥാപിച്ചിട്ടുള്ള കൊടിമരങ്ങൾ, തോരണങ്ങൾ, കൊടിക്കറുകൾ, ഫ്ലക്സുകൾ, പരസ്യ ബോർഡുകൾ എന്നിവ നീക്കം ചെയ്യുന്നത് സംബന്ധിച്ച് സൂചന (3), (4) - ലെ ബഹു. ഹൈക്കോടതി നിർദ്ദേശാനുസരണം സർക്കാർ സൂചന (5) പ്രകാരം മാർഗ്ഗനിർദ്ദേശങ്ങൾ പുറപ്പെടുവിച്ചിരുന്നു.

സൂചന (6) ലെ ബഹു. ഹൈക്കോടതി നിർദ്ദേശ പ്രകാരം 2007ലെ കേരള റോഡ് സേഫ്റ്റി അതോറിറ്റി ആക്ട് സെക്ഷൻ 14 പ്രകാരമുള്ള വ്യവസ്ഥകൾ പാലിക്കുന്നതിനുള്ള മാർഗ്ഗനിർദ്ദേശങ്ങൾ നൽകിക്കൊണ്ട് സൂചന (7) പ്രകാരം സർക്കുലർ പുറപ്പെടുവിച്ചിരുന്നു.

സൂചന (8) ലെ ബഹു. ഹൈക്കോടതിയുടെ ഉത്തരവ് പ്രകാരം സംസ്ഥാനത്തെ പാതയോരങ്ങളിൽ നിന്നും അനധികൃത ബോർഡുകൾ, ബാനറുകൾ, കൊടിയോരണങ്ങൾ എന്നിവ നീക്കം ചെയ്യുന്നതിന് തദ്ദേശ സ്ഥാപനതലത്തിൽ പ്രാദേശിക കമ്മിറ്റികളും അവ യഥാക്രമം നടപ്പിലാക്കുന്നുണ്ട് എന്ന് നിരീക്ഷിക്കുന്നതിനായി ജില്ലാ തല മോണിറ്ററിംഗ് കമ്മിറ്റികളും രൂപീകരിച്ചുകൊണ്ട് സൂചന (9) പ്രകാരം ഉത്തരവ് പുറപ്പെടുവിച്ചിരുന്നു. കൂടാതെ അനധികൃത കൊടിയോരണങ്ങളും ഫ്ലക്സ് ബോർഡുകളും നീക്കം ചെയ്യുന്നതിന് NHAI തദ്ദേശ സ്വയംഭരണ, റവന്യൂ പൊതുമരാമത്ത് എന്നീ വകുപ്പുകളുമായി ബന്ധപ്പെട്ട് വരുന്ന ചട്ടങ്ങളിൽ പ്രസ്തുത വകുപ്പുകൾ തന്നെ ആവശ്യമായ ഭേദഗതി വരുത്തേണ്ടതാണെന്ന നിർദ്ദേശം നൽകി സൂചന (11) പ്രകാരം ഉത്തരവായിരുന്നു.

സൂചന (12) ലെ ബഹു. ഹൈക്കോടതിയുടെ ഉത്തരവ് പ്രകാരം സംസ്ഥാനത്തെ പാതയോരങ്ങളിൽ നിന്നും അനധികൃത ബോർഡുകൾ, ബാനറുകൾ, കൊടിയോരണങ്ങൾ എന്നിവ holding ഏരിയയിലേക്ക് നീക്കം ചെയ്യുന്നതിനും അവ ശാസ്ത്രീയമായി

സംസ്കരിക്കുന്നതിന് അവശ്യമായ ചെലവുകൾ ഈടാക്കുന്നത് സംബന്ധിച്ചുള്ള മാർഗ്ഗ നിർദ്ദേശങ്ങൾ സൂചന (13) പ്രകാരമുള്ള സർക്കുലർ മുഖേന പുറപ്പെടുവിച്ചിരുന്നു.

സൂചന (14) ലെ ബഹു. ഹൈക്കോടതിയുടെ ഉത്തരവിലെ നിർദ്ദേശത്തിന്റെ അടിസ്ഥാനത്തിൽ അനധികൃതമായി സ്ഥാപിക്കപ്പെട്ടിട്ടുള്ള എല്ലാ ഫ്ലക്സ് ബോർഡുകളും ബാനറുകളും കൊടിയോരണങ്ങളും നീക്കം ചെയ്യുന്നതിന് തദ്ദേശ സ്ഥാപന സെക്രട്ടറിമാർക്ക് ആവശ്യമുള്ള സഹായങ്ങൾ ചെയ്യുന്നതിന് സംസ്ഥാന/ജില്ലാ പോലീസ് മേധാവികൾക്ക് നിർദ്ദേശങ്ങൾ നൽകിക്കൊണ്ട് സൂചന (15) പ്രകാരം സർക്കുലർ പുറപ്പെടുവിച്ചിരുന്നു.

ബഹു. ഹൈക്കോടതിയുടെ നിർദ്ദേശ പ്രകാരം 11.12.2024 ന് തദ്ദേശ സ്വയംഭരണ പ്രീൻസിപ്പൽ സെക്രട്ടറിയുമായി ഓൺലൈൻ മുഖാമ്പരം നടത്തിയ ഹിയറിംഗിന്റെ അടിസ്ഥാനത്തിൽ താഴെ കാണുന്ന നിർദ്ദേശങ്ങൾ പുറപ്പെടുവിക്കുന്നു.

- ബഹുമാനപ്പെട്ട ഹൈക്കോടതിയുടെ നിർദ്ദേശാനുസരണം പൊതുസ്ഥലങ്ങളിലെ നടപ്പാതകളിലും ഹാൻഡ് റെയിലുകളിലും, ട്രാഫിക് ഐലന്റുകളിലും, റോഡുകളുടെ മധ്യഭാഗത്തുള്ള മീഡിയനുകളിലും വൃക്ഷതികളുടെയും, പൊതു പ്രവർത്തകരുടെയും, മറ്റു പ്രവർത്തകരുടെയും പേരുകൾ, ചിത്രങ്ങൾ, വൃക്ഷതികൾ, പ്രസ്ഥാനം എന്നിവ വെളിപ്പെടുത്തുന്ന ബോർഡുകൾ, ബാനറുകൾ, പോസ്റ്ററുകൾ, കൊടി തോരണങ്ങൾ എന്നിവ സ്ഥാപിക്കാൻ പാടുള്ളതല്ല. പൊതു റോഡുകൾ, നടപ്പാതകൾ, മീഡിയനുകൾ മുതലായവയിൽ സർക്കാർ വകുപ്പുകളുടെയോ സർക്കാർ അനുബന്ധ സ്ഥാപനങ്ങളുടെയോ സ്വകാര്യ ഏജൻസികളുടെയോ മത സ്ഥാപനങ്ങളുടെയോ, മറ്റു സ്ഥാപനങ്ങളുടെയോ ബോർഡുകൾ, ബാനറുകൾ, പോസ്റ്ററുകൾ , കൊടിയോരണങ്ങൾ എന്നിവ സ്ഥാപിക്കുവാൻ പാടില്ല. അപ്രകാരം സ്ഥാപിച്ചിട്ടുള്ളവ തദ്ദേശ സ്ഥാപന സെക്രട്ടറിമാർ അടിയന്തരമായി നീക്കം ചെയ്യേണ്ടതും നിയമപ്രകാരമുള്ള നടപടികൾ സ്വീകരിക്കേണ്ടതുമാണ്.
- സൂചന (15) സർക്കുലർ പ്രകാരമുള്ള നടപടികൾ ബന്ധപ്പെട്ട ഉദ്യോഗസ്ഥർ സ്വീകരിക്കുന്ന അവസരത്തിൽ വിവിധ രാഷ്ട്രീയ പാർട്ടികൾ സ്ഥാപിച്ചിട്ടുള്ള എത്ര ബോർഡുകൾ / ബാനറുകൾ / പോസ്റ്ററുകൾ /കൊടിയോരണങ്ങൾ എന്നിവ നീക്കം ചെയ്യപ്പെട്ടിട്ടുണ്ട്, പ്രസ്തുത പാർട്ടികൾ/ പ്രവർത്തകർക്കെതിരെ എത്ര FIR രജിസ്റ്റർ ചെയ്തിട്ടുണ്ട്, ആ വിധത്തിൽ അവരിൽ നിന്ന് എത്ര രൂപ പിഴ ഈടാക്കിയിട്ടുണ്ട്

എന്നുമുള്ള വിവരങ്ങൾ സമാഹരിക്കേണ്ടതും വിവരം സർക്കാരിനെ അറിയിക്കേണ്ടതുമാണ്.

- 18/12/2024 നകം സംസ്ഥാനത്തെ എല്ലാ റോഡുകളും, നടപ്പാതകളും, കൈവരികളും, മീഡിയനുകളും, ട്രാഫിക് ഐലന്റുകളും പോസ്റ്ററുകൾ/ബോർഡുകൾ/ബാനറുകൾ/കൊടികൾ എന്നിവകളിൽ നിന്നും വിമുക്തമാക്കേണ്ടതാണ്. അതിനുള്ള അടിസ്ഥാന നടപടികൾ തദ്ദേശസ്വയംഭരണ സ്ഥാപന സെക്രട്ടറിമാർ സ്വീകരിക്കേണ്ടതാണ്. അല്ലാത്തപക്ഷം സെക്രട്ടറിമാരിൽ നിന്നും പോസ്റ്ററുകൾ/ബോർഡുകൾ/ബാനറുകൾ/കൊടികൾ ഒന്നിന് 5000/- രൂപ നിരക്കിൽ കോടതി നിർദ്ദേശത്തിന്റെ അടിസ്ഥാനത്തിൽ പിഴ ഈടാക്കുന്നതായിരിക്കും.
- മേൽ നിർദ്ദേശങ്ങളുടെ അടിസ്ഥാനത്തിൽ, നീക്കം ചെയ്യാവുന്ന എണ്ണം, ചുമത്തിയ പിഴ, ഈടാക്കിയ പിഴ എന്നിവ സംബന്ധിച്ച വിവരങ്ങൾ ബഹു.ഹൈക്കോടതി മുമ്പാകെ സമർപ്പിക്കുന്നതിനുള്ള നടപടികൾ പ്രിൻസിപ്പൽ ഡയറക്ടർ സ്വീകരിക്കേണ്ടതാണ്.

JAYAKUMARI P
ജോയിന്റ് സെക്രട്ടറി

പകർപ്പ്

അഡ്വക്കേറ്റ് ജനറൽ, എറണാകുളം (ആമുഖ കുത്ത് മുഖേന)
ഓഫീസർ ഓൺ സ്പെഷ്യൽ ഡ്യൂട്ടി, O/o ചീഫ് സെക്രട്ടറി, കേരള
ആഭ്യന്തര വകുപ്പ് അഡീഷണൽ ചീഫ് സെക്രട്ടറിയുടെ പേജ്ലണൽ അസിസ്റ്റന്റ്
ഗതാഗത വകുപ്പ് സെക്രട്ടറിയുടെ പി.എ യ്ക്ക്
റവന്യൂ വകുപ്പ് അഡീഷണൽ ചീഫ് സെക്രട്ടറിയുടെ പി.എ യ്ക്ക്
ഗതാഗത വകുപ്പ്
റവന്യൂ വകുപ്പ്
എല്ലാ ജില്ലാ കളക്ടർമാർക്കും (പ്രിൻസിപ്പൽ ഡയറക്ടർ മുഖേന)
സംസ്ഥാന പോലീസ് മേധാവി
എല്ലാ ജില്ലാ പോലീസ് മേധാവികൾക്കും (സിറ്റി/ റൂറൽ)(സംസ്ഥാന പോലീസ് മേധാവി
മുഖേന)
പ്രിൻസിപ്പൽ ഡയറക്ടർ, തദ്ദേശ സ്വയംഭരണ വകുപ്പ്, തിരുവനന്തപുരം.
എല്ലാ തദ്ദേശ സ്വയംഭരണ സെക്രട്ടറിമാർക്കും (പ്രിൻസിപ്പൽ ഡയറക്ടർ മുഖേന)
ട്രാൻസ്പോർട്ട് കമ്മീഷണർ, തിരുവനന്തപുരം.
കമ്മീഷണർ, കേരള റോഡ് സേഫ്റ്റി അതോറിറ്റി, തിരുവനന്തപുരം.
എക്സിക്യൂട്ടീവ് ഡയറക്ടർ, ഇൻഫർമേഷൻ കേരള മിഷൻ, തിരുവനന്തപുരം.
ഇൻഫർമേഷൻ & പബ്ലിക് റിലേഷൻസ് (വെബ് & ന്യൂ മീഡിയ) വകുപ്പ്,
കരുതൽ ഫയൽ/ഓഫീസ് കോപ്പി (LSGD-RC1/262/2022-LSGD)

ഉത്തരവിൻ പ്രകാരം

Signed by
Danuja M S
Date: 12-12-2024 17:39:55

സെക്ഷൻ ഓഫീസർ.

For the first time, there was decisive action on the ground and a clear change was seen with every illegal flag/board/festoon being removed.

I considered the matter thereafter on 18th December, 2024 and after interacting with the Principal Secretary, Local Self Government Institutions, another order was issued on that day appreciating the action taken and commending the administration for it; with directions to all the Secretaries of the Local Self Government Institutions to continue to act as per orders without fail.

The action of the authorities, as afore notice, led to certain vested interests intimidating and threatening the Secretaries and other Local Self Government Institutions which this Court could not see lightly. Therefore, on that day, this Court directed as under:

“15. In such circumstances, I order that:

- (a) The Authorities will continue to act in future, as if it is a mission in perpetuity, as per the earlier interim orders of this Court and the Government Circulars dated 11.12.2024, 12.12.2024, as also the Unofficial Note dated 13.12.2024.*
- (b) The Government, through its competent Authority, will issue a fresh Circular informing every Local Self Government Institution of the afore direction and emphasizing that the mission is a perpetual one; further making it again known to them that they are obligated to collect fines @ Rs.5,000/-, or whatever is to be fixed in future, against every piece of illegally installed article - be that a board, flag or festoon from the perpetrators without fail; and that, otherwise, it would be their personal responsibility.*
- (c) I direct the State Police Chief to issue necessary Circular to all the Station House Officers in Kerala, within a period of seven days from the date of receipt of a copy of this order, through Email or such other methods, that whenever the Local Self Government Institutions approach them for registration of an FIR, it shall be done peremptorily without any waste of time; and that failure to do so would make them personally liable in law.”*

The State Police Chief, thus brought out a Circular as ordered by this Court which has been placed on record along with the memo of the learned Government Pleader which also I deem it necessary to extract as under:

POLICE



DEPARTMENT

No.U4-25510/2022/PHQ

Police Headquarters,

Thiruvananthapuram

✉phq.pol@kerala.gov.in

☎04712721547

Dated. 08-01-2025

Circular. 2/2025/PHQ

Sub : Erection of Illegal Boards/Banners/ Flags etc in public places-
Compliance of the direction of Hon'ble High Court - Instructions
issued-reg.

Ref : 1. Order of Hon'ble High Court in WP(C) 22750/2018 dated
18/12/2024
2. Govt Circular dated 11/12/2024, 12/12/2024 of LSGD(RC)
Department
3. Unofficial Note dated 13/12/2024 of LSGD(RC) Department

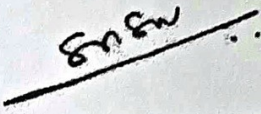
The Hon'ble High Court of Kerala had issued directions earlier to the Govt and State Police Chief to take steps to curb the public nuisance caused by erection of Illegal Boards/ Banners/ Flags etc in public places. Accordingly, Govt as well as PHQ has issued directions from time to time to comply the Court direction in its letter and spirit.

The Hon. High Court of Kerala in WP (C) No. 22750/2018 dtd 18.12.2024, has directed the authorities to continue the act of imposing exemplary fine against those who violates the directions of authorities in this regard to ensure that the Boards/ Banners/ Flags / Festoons that have been taken away do not reappear. It was stated that the registration of FIRs is also equally important, though it can be for the event and not for each individual board/flag. It was further directed that whenever the Local Self Government Institutions approach the Police for registration of an FIR, it shall be done peremptorily without any waste of time; and that failure to do so would make them personally liable in law.

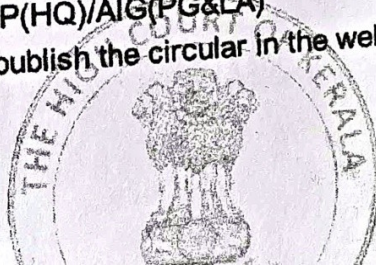
During the discharge of action to remove every unauthorized board, flag, festoon which is still remaining on the public streets, whenever the Secretary or Staff of the LSGD are threatened by any vested interest or their foot soldiers to derail the mission, the SHOs shall ensure that the authorities are given protection from the

attack of such vested interests and that they are taken to task under the law to the fullest extent.

The instructions aforesaid, the directions in the Court Order and Government Circulars referred above are to be followed in stricto sensu, without fail.


 SHAIK DARVESH SAHEB IPS
 State Police Chief

To : All DPCs/ All SDPOs/ All SHOs
 Copy : ADGP(L&O)/Zonal IsGP/ all Range DisGP
 To : CAs to SPC/ADGP(HQ)/AIG(PG&LA)
 ADGP, SCRB to publish the circular in the website.



Thereafter, one or two incidents of grave violations were brought to my notice, including by an Association of Government servants and recognizing that there must be a mechanism for citizens to complain. I directed the Government to open a website for the purpose of reporting installation of illegal boards/flags/festoons etc. The learned Government Pleader now says that such a mechanism would be put in place by the first week of April, 2025.

33. The catena of interim orders passed by this Court and the various Circulars issued consequent to it by the Government thus sets the stage for this

Court to issue Judgment, consolidating and collating all the directions therein.

34. These Writ Petitions are thus ordered as under:

(a) All Circulars/Orders issued by the Government and directions issued by this Court, particularly those referred to and extracted *supra*, are hereby confirmed and declared binding on all. Consequently, the installation of Unauthorised Boards/Banners/Hoardings/Flags/Festoons and such other, as defined and described in the Circulars/Orders of the Government and the interim orders of this Court, is declared illegal and liable to fine and penal action as per law.

(b) In terms of the Circulars/Orders of the Government afore extracted, especially those dated 08.01.2010 (Ext P7), 06.10.2013, 10.12.2024 and 12.02.2024; and the interim Orders of this Court, it is further ordered that the non-removal of illegal Boards/Banners/Hoardings/Flags/Festoons - as of today or in future - shall become the personal responsibility of the Secretaries of the Local Self Government Institutions. This obligation and responsibility will be *qua* collection of fine for each violation, registration of FIR, collection of costs and action to be taken against Advertising Agency/Press, as ordered in the interim order of this Court dated 19.01.2022 and GO (Rt) No. 3075/2022/LSGD dated 12.12.2022.

(c) The State Police Chief is ordered to ensure full compliance of his Circular, bearing No.2/2025/PHQ, dated 8.1.2025, by all the Station House Officers; and further that should there be any violation of the same, necessary action against erring officials be taken as per law.

(d) The Joint Directors of Local Self Government Institutions/Convenors of District Level Monitoring Committees shall ensure that necessary review meetings and collating of reports from the Secretaries of the Local Self Government Institutions are done on a regular basis, preferably monthly; and necessary action taken, including by reporting it to the Secretary, LSGI Department - which Authority is admittedly, vested with the co-ordination of implementation of the Orders and Circulars of the Government.

(e) The Secretary, PWD, is ordered to act implicitly in terms of the Government Order, G.O.(Rt)No.1173/2023/LSGD, dated 06.06.2023, in relation to violation in Highways under National Highways Authority of India.

(f) The Election Commission of India and the State Election Commission of Kerala, are directed to ensure that the Orders of this Court and Circulars/Orders of the Government are not violated by any entity or political party during election times. Necessary incorporations of this shall be made in the Model Code of Conduct, to be published by them in future; and while doing so, the interim order of this Court dated 03.03.2021 shall be adverted to.

(g) The Road Safety Authority, namely respondent No.22, is hereby directed to ensure that the directions of this Court and the Circulars/Orders of the Government, are implicitly complied with under the ambit of Section 14 of the Kerala Road Safety Authority Act, 2007; and to take necessary steps for this within a period of one month from the date of receipt of a copy of this judgment. The order issued by the said Authority, bearing No. A2/121/KRSA/2013, dated 06.02.2020 - extracted in paragraph 21 above, is affirmed and it is directed to ensure its full compliance in future, perpetually.

35. This Writ Petition will thus stand disposed of on the basis of the afore directions; but I order that it be listed on the 10th of April 2025 for the Secretary, Local Self Government Institutions, to file her report on the action taken with respect to the internet platform for preferring complaints by citizens as also the first compliance report in terms of the directions in (d) above, for the consideration of this Court; as also for the Road Safety Authority to file its report on the steps taken as per direction '(g)' above. In addition, the Government of Kerala, through appropriate Official/ Authority, will file a report before this Court as to the progress of the action as stipulated by it in its Order dated 06.06.2023.

36. In denouement, I must say that this Court took upon itself a task in the year 2018, when it was thought impossible to achieve what it set out to; and this was manifest from the various impediments caused by vested interests, which

included even personal attacks against it at various times. However, I record unreserved appreciation of the unstinted support given to the endeavor and to the intent of this Court, by the Government of Kerala, particularly in its Local Self Government Department and Secretary, evident from the fact that every interim order referred above and otherwise, were implemented in its letter and spirit, through the issuance of apposite Circulars and Orders, without any waste of time, sometimes even within a day or two.

37. This Court also notes with commendation the assistance offered by the learned Additional Advocate General - Sri.Ashok M Cherian and the learned Government Pleader - Sri.Shyam Prasanth, both of whom travelled with this Court, enlivening the stated intent of the Government to rid Kerala of the menace of unauthorised Boards/Banners/Hoardings/Flags/Festoons; and ensuring that necessary pleadings, Orders and Circulars were placed on record.

38. No doubt, the beginning has been made and it is widely reported that our State has become cleaner and more aesthetic on account of the removal of the majority of the unauthorised boards/flags and festoons. It is now for the Government to implement their own Orders/Circulars, as also the directions of this Court in the earlier interim orders and which are part of this judgment.

39. This Court has no doubt that necessary measures in this regard are imperative, for the march of this State to the future years, to achieve the ideal of

‘Navakeralam’ and to maintain it as “God’s Own Country”.

40. Clichéd as the usage may be, last but not the least, I place on record commendation to Sri.Harish Vasudevan, the learned Amicus Curiae, who acted without fear in filing reports from time to time on all the violations; and in doing so, even beyond his call of duty and without any claim for remuneration. The reports on record are numerous and I acknowledge the effort, time and energy expended and spent by Sri.Harish Vasudevan for this. Some credit certainly goes to him also for the breakthrough achieved – albeit taking a few years; and for this Court being able to dispose of this matter on a happy note.

I leave liberty to the learned Amicus Curiae Sri.Harish Vasudevan - who shall hereinafter be assisted by Sri.Jacob Mathew, learned counsel of this Court - to file periodic reports before this Court, preferably by the next posting date or even earlier, depending upon the requirement; in which event, it shall be listed along with the afore action taken reports or even earlier - as the case may be, so as to enable this court to issue appropriate orders.

sd/-
DEVAN RAMACHANDRAN
JUDGE

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APPENDIX IN W.P.(C)22750 OF 2018

PETITIONER'S EXHIBITS:

EXHIBIT-P1:	A TRUE COPY OF THE PHOTOGRAPH OF THE UNAUTHORISED HOARDING AND BANNER.
EXHIBIT-P2:	A TRUE COPY OF THE COMMUNICATION NO.G1/80/2017-PWD DATED 25.02.2017 ISSUED BY THE ADDL.CHIEF SECRETARY TO THE GOVERNMENT TO THE 4TH RESPONDENT.
EXHIBIT-P3:	A TRUE COPY OF THE REPRESENTATION DATED 04.05.2018 SENT TO THE 6TH RESPONDENT.
EXHIBIT-P4:	A TRUE COPY OF THE REPRESENTATION DATED 04.05.2018 SUBMITTED TO THE 9TH RESPONDENT AND ACKNOWLEDGMENT.
EXHIBIT-P5:	A TRUE COPY OF THE CIRCULAR NO.24935/H1/2004/PWD DATED 23.04.2013 ISSUED BY THE 1ST RESPONDENT.
EXHIBIT-P6:	A TRUE COPY OF REPRESENTATION DATED 12.06.2018 SENT TO THE 5TH RESPONDENT.
EXHIBIT-P7:	A TRUE COPY OF THE CIRCULAR NO.57850/RC4/2008/LSGD DATED 08.01.2010 ISSUED BY THE 2ND RESPONDENT.
EXHIBIT-P8:	A TRUE COPY OF THE REPRESENTATION DATED 12.06.2018 SENT TO THE 8TH RESPONDENT.
EXHIBIT-P9:	A TRUE COPY OF THE REPRESENTATION DATED 12.06.2018 SENT TO THE 9TH RESPONDENT.
EXHIBIT-P10:	A TRUE COPY OF THE JUDGMENT DATED 21.02.2013 OF THE HONOURABLE HIGH COURT IN W.P.(C) NO.27011/2012.
EXHIBIT P10(E)	THE TRUE COPY OF THE NOTICES DATED 27/10/2018 ISSUED BY KODUVALLY MUNICIPALITY.
EXHIBIT P10(F)	THE TRUE COPY OF NOTICE DATED 12/10/2018 ISSUED BY VADANAPPALLY GRAMA PANCHAYATH.
EXHIBIT P10(G)	THE TRUE COPY NOTICE DATED 25/10/2018 ISSUED BY PERUVAMB GRAMA

PANCHAYATH.

- EXHIBIT P10(H) THE TRUE COPY OF NOTICE DATED 24/10/2018 ISSUED BY KULAKADA GRAMA PANCHAYATH.
- EXHIBIT-P11: A TRUE COPY OF THE CIRCULAR NO.71806/RC2/2012/LSGD DATED 25.10.2013 ISSUED BY THE 2ND RESPONDENT.
- EXHIBIT-P12: A TRUE COPY OF JUDGMENT DATED 21.07.2015 OF THE HONOURABLE HIGH COURT IN W.P.(C) NO.32334/2014.
- EXHIBIT-A1 A TRUE PHOTOCOPY OF THE GO(MS)NO.6/2016/TRANS. DATED 02/02/2016 ALONG WITH ITS APPENDIX.
- EXHIBIT-A2 A TRUE PHOTOCOPY OF THE GO(RT) NO.133/2016/TRANS. DATED 04/03/2016.
- EXHIBIT-A3 TRUE PHOTOGRAPHS OF THE HOARDINGS AND BILLBOARDS ERECTED AND INSTALLED IN PATHWAYS AND STREET MEDIANS.
- EXHIBIT-A4 A TRUE PHOTOCOPY OF THE CIRCULAR NO.RC2/41/2018/LSGD DATED 06/10/2018 ISSUED BY THE DEPARTMENT OF LOCAL SELF GOVERNMENT.
- EXHIBIT A5 PHOTOGRAPHS TAKEN ON 8.10.2018 FROM VARIOUS PARTS OF COCHIN MUNICIPAL CORPORATION.
- EXHIBIT-A6 TRUE COPY OF THE PHOTOGRAPHS OF THE VARIOUS ILLEGAL AND UNAUTHORIZED HOARDINGS SEEN ERECTED IN TRIVANDRUM CITY ON 28/10/2018.
- EXHIBIT-A7 TRUE COPY OF THE PHOTOGRAPHS OF THE VARIOUS ILLEGAL AND UNAUTHORIZED HOARDINGS BY POLITICAL PARTIES SEEN ERECTED IN KOCHI CITY.
- EXHIBIT - A8 TRUE COPY OF THE PHOTOGRAPHS OF THE VARIOUS ILLEGAL AND UNAUTHORIZED HOARDINGS AND POSTERS BY MOVIE PRODUCTION COMPANIES SEEN ERECTED IN KOCHI CITY.
- EXHIBIT-A9. TRUE COPY OF THE PHOTOGRAPHS OF THE VARIOUS ILLEGAL AND UNAUTHORIZED HOARDINGS BY SHOP KEEPERS SEEN ERECTED IN KOCHI CITY.
- EXHIBIT -A10 A TRUE PHOTOCOPY OF THE NEWSPAPER ARTICLE DATED 25/10/2018 PUBLISHED IN THE TIMES OF INDIA DAILY.
- EXHIBIT-A11 A TRUE PHOTOCOPY OF THE NEWSPAPER ARTICLE DATED 26/10/2018 PUBLISHED IN THE TIMES OF INDIA DAILY.
- EXHIBIT-A12 TRUE PHOTOGRAPHS OF THE FLEX BOARDS OF THE KERALA SAMRAKSHANA

	YATRA ERECTED BEFORE THE SECRETARIAT AND OVERBRIDGE AREAS IN THIRUVANANTHAPURAM CITY.
EXHIBIT A13	TRUE PHOTOGRAPHS OF FLEX BOARDS ERECTED BY THE CONGRESS PARTY AND FLAGS ERECTED BY THE BHARATIYA JANATHA PARTY ALONG THE HIGHWAY ROADS LEADING TO THE CITY LIMITS.
EXHIBIT A14	TRUE PHOTOGRAPHS OF THE FLEX BOARDS ERECTED IN FRONT OF THE MUNICIPAL OFFICE, KALAMASSERY.
EXHIBIT A15	TRUE PHOTOGRAPHS OF THE FLEX BOARDS OF THE JANA MAHA YATRA ERECTED IN FRONT OF THE GOVERNMENT SECRETARIAT.
EXHIBIT15(A)	TRUE COPY OF LETTER DATED 12/10/18 SUBMITTED BY KERALA ADVERTISING INDUSTRIES ASSOCIATION BEFORE THRISSUR CORPORATION.
ANNEXURE A16	TRUE PHOTOGRAPHS OF THE FLEX BOARDS INSTALLED IN VARIOUS DISTRICTS.
EXHIBIT - R16(A)	A PHOTOGRAPHS OF ONE OF THE BOARD INSTALLED BY THE VARIOUS PARTIES AND OTHER ORGANIZATIONS.
ANNEXURE A17	TRUE PHOTOGRAPHS OF THE RELEVANT PAGES OF THE JUDGMENT DATED 22.12.2016 OF THE NATIONAL GREEN TRIBUNAL.
EXHIBIT - R17(A)	TRUE COPY OF THE PHOTOGRAPHS SHOWING CERTAIN SITES AND INSTALLATIONS OF ONE OF THE PETITIONERS.
EXHIBIT - R17(B)	TRUE COPY OF THE PHOTOGRAPHS SHOWING THE STATUS OF THE INSTALLATIONS OF THE PETITIONERS PRIOR TO THE REMOVAL AND AFTER THAT.
ANNEXURE A18	TRUE PHOTOGRAPHS OF THE HOARDINGS ERECTED NEAR THALLIKULAM NEAR THE NATIONAL HIGHWAY.
ANNEXURE R18(A)	TRUE COPY OF G.O.(RT)NO.2773/2018/LSGD DATED 26.10.2018
ANNEXURE R18(B)	TRUE COPY OF THE MESSAGE SENT TO ALL DPCS.
ANNEXURE A19	TRUE PHOTOGRAPHS OF THE FLEX BOARD ERECTED INDICATING THE 91ST ANNIVERSARY OF THE KOTHAMANGALAM MUNICIPAL COUNCIL.
EXHIBIT A20	TRUE PHOTOGRAPHS OF THE HOARDINGS, BANNERS, FLAGS, POSTERS ERECTED IN FRONT OF THE TRAFFIC ENFORCEMENT UNIT (WEST), KOCHI CITY.
EXHIBIT 21	A TRUE PHOTOCOPY OF THE EXECUTIVE DIRECTIVE NO.9/2016 DATED 14.11.2016.
ANNEXURE A22	TRUE COLOUR COPY OF THE PHOTOGRAPHS OF THE HOARDINGS, BANNERS, FLAGS, POSTERS ERECTED FOR ELECTION CAMPAIGN IN VIOLATION OF LAW.
ANNEXURE A24	A TRUE PHOTOCOPY OF THE NEWSPAPER REPORT MALAYALA MANORAMA DAILY DATED 21.12.2022 REGARDING THE ACCIDENT CAUSED IN THRISSUR
ANNEXURE A25	A TRUE PHOTOCOPY OF THE GOVERNMENT ORDER GO.(RT).NO.3256/2022/LSGD DATED 31.12.2022
ANNEXURE A26	A TRUE COLOUR COPY OF THE PHOTOGRAPHS TAKEN FROM TRIVANDRUM IN FRONT OF THE CENTRAL RAILWAY STATION

ANNEXURE A27	A TRUE COLOUR COPY OF THE PHOTOGRAPHS SHOWING THE FLAGS ERECTED ON HANDRAIL PILLARS OF THE BRIDGE SITUATED AT CHETTUVA IN THRISSUR DISTRICT
ANNEXURE A28	A NEWSPAPER REPORT DATED 03.01.2023 IN MALAYALA MANORAMA REGARDING THE ACCIDENT CAUSED IN FRONT OF THE THRISSUR MUNICIPAL CORPORATION.
ANNEXURE 29	A TRUE PHOTOCOPY OF THE ORDER NO.R1/20413/22 ISSUED BY THE SECRETARY, PARAPPANANGADI MUNICIPALITY DATED 23.12.2022.
ANNEXURE A30	A TRUE PHOTOCOPY OF THE LETTER NO. AE/LSGD/PGI/126/2022-23 ISSUED BY THE ASSISTANT ENGINEER, LSGD DATED 28.12.2022
ANNEXURE A31	TRUE PHOTOGRAPH PERTAINING TO THE FLEX BOARD ERECTED BY THE GOVERNMENT IN FRONT OF GOVT.SECRETARIAT, THIRUVANANTHAPURAM.
ANNEXURE A32	TRUE PHOTOGRAPHS PERTAINING TO THE FLEX BOARDS ERECTED IN OTHER PARTS OF THE THIRUVANANTHAPURAM CITY, ABUTTING THE ROAD, ESPECIALLY AT THAMPANOR
ANNEXURE A33	TRUE PHOTOGRAPHS OF ERECTION OF THE BOARDS, FLAGS, FESTOONS IN KOTTYAM MUNICIPAL CORPORATION AREA.
ANNEXURE A34	PHOTOGRAPH OF ONE OF THE BOARDS ERECTED ENCROACHING THE PUBLIC PATHWAY AT MARINE DRIVE, ERNAKULAM.
ANNEXURE A35	A PHOTOGRAPH OF ONE OF THE BOARD IN RELATION TO THE G20 2023 BEING HELD AT KUMARAKOM.
ANNEXURE A36	A PHOTOGRAPH OF ONE OF THE BOARD ERECTED IN TRIVANDRUM CITY.

RESPONDENTS' EXHIBITS

EXHIBIT R1	TRUE COPY OF THE REPORT SENT BY THE CHIEF ENGINEER, PWD ROADS AND BRIDGES TO RESPONDENT NO.1.
EXHIBIT R1 (A)	TRUE COPY OF THE CIRCULAR NO.RC2/41/2018/LSGD DATED 20/07/2019.
EXHIBIT R1(A)	TRUE COPY OF THE G.O.(RT)NO.1898/2017/LSGD DATED 7.6.2017.
EXHIBIT R1(B)	TRUE COPY OF THE MINUTES OF THE MEETING WITH SUGGESTIONS NOTED IN THE MEETING HELD ON 24/01/2018.
EXHIBIT R1(C)	TRUE COPY OF THE REPORT SUBMITTED BY THE KERALA SUCHITWA MISSION DATED NIL.
EXHIBIT R1(D)	TRUE COPY OF THE MINUTES OF THE ALL PARTY MEETING HELD ON 08/05/2018 ALONG WITH THE LIST OF PERSONS PARTICIPATED.

EXHIBIT R1(E)	TRUE COPY OF THE PLASTIC WASTE MANAGEMENT RULES 2016 BY THE NOTIFICATION GSR 320(E) DATED 18/03/2016.
EXHIBIT R1(E)(I)	TRUE COPY OF THE NOTIFICATION GSR 285(E) DATED 27/03/2018.
EXHIBIT R1(F)	TRUE COPY OF THE REPORT SENT BY THE CHIEF ENGINEER, PWD ROADS AND BRIDGES TO RESPONDENT NO.1
EXHIBIT R10	TRUE COPY OF THE REGISTRATION CERTIFICATE NO.EKM/TC/536/2012 DATED 06-08-2012
EXHIBIT R1(A)	TRUE COPY OF THE CIRCULAR NO.RC2/41/2018/LSGD DATED 20.07.2019.
EXHIBIT R10(A)	TRUE COPY OF THE REGISTRATION CERTIFICATE NO.EKM/TC/536/2012 DATED 06/08/2012.
EXHIBIT R10(B)	TRUE COPY OF THE CODE OF CONDUCT ISSUED BY THE PETITIONER ASSOCIATION TO ITS MEMBERS.
EXHIBIT R10(C)	TRUE COPY OF THE GAZETTE PUBLICATION DATED 16/12/2009.
EXHIBIT P10(D)	TRUE COPY OF THE GAZETTE PUBLICATION DATED 02/10/12.
ANNEXURE-1	COPY OF RESOLUTION NO.1 DATED 22/04/2017 OF THE KANNUR CORPORATION REGARDING BAN OF PLASTIC CARRY BAGS ETC. IN KANNUR CORPORATION AREA.
ANNEXURE-2	COPY OF MINUTES DATED 08/05/2018 OF THE COMMITTEE CONSTITUTED BY GOVERNMENT OF KERALA REGARDING BAN OF FLEX BOARDS.
EXHIBIT -R12(A)	A TRUE COPY OF THE MINUTES OF THE MEETING OF THE COMMITTEE HELD IN THE CHAMBERS OF THE MAYOR OF THIRUVANANTHAPURAM CORPORATION DATED 30.08.2022
EXHIBIT-R12(B)	A TRUE COPY OF THE ORDER PASSED BY THE SECRETARY OF THE CORPORATION DATED 23.12.2022
EXHIBIT-R12(C)	A TRUE COPY OF THE ORDER DATED 30.12.2022 FORMING THE MONITORING COMMITTEE
EXHIBIT-R12(D)	A TRUE COPY OF THE COMMUNICATION DATED 04.01.2023 INTIMATING INITIATION OF PROSECUTION STEPS
EXHIBIT-R12(E)	A TRUE COPY OF THE NOTICES ISSUED FOR CONVENING THE MEETING OF THE

MONITORING COMMITTEE DATED 06.01.2023

EXHIBIT-R12(F)	A TRUE COPY OF THE MINUTES OF THE MEETING HELD ON 09.01.2023
EXHIBIT-R12(H)	A TRUE COPY OF THE ACKNOWLEDGMENT DATED 21.01.2023 ISSUED BY MUSEUM SHO
EXHIBIT-R12(J)	A TRUE COPY OF THE LETTER DATED 04.02.2023
EXHIBIT-R12(I)	A TRUE COPY OF THE COMMUNICATION ADDRESSED TO VARIOUS SHOS DATED 31.01.2023
EXHIBIT-R12(G)	A TRUE COPY OF THE LETTER ISSUED TO VARIOUS POLITICAL PARTIES DATED 18.01.2023
EXHIBIT R12(H)	A TRUE COPY OF THE ACKNOWLEDGEMENT DATED 21.1.2023 ISSUED BY MUSEUM SHO
EXHIBIT R12(I)	A TRUE COPY OF THE COMMUNICATION ADDRESSED TO VARIOUS SHOS DATED 31.1.2023
EXHIBIT R12(J)	A TRUE COPY OF THE LETTER DATED 4.2.2023.
ANNEXURE-3	COPY OF CIRCULAR NO.RC2/41/2018/LSGD DATED 06/10/2018 OF GOVERNMENT OF KERALA.
EXHIBIT R13(1)	A COPY OF THE RELEVANT PAGES OF CAUSE LIST DATED 23/10/2018.
EXHIBIT R13(2)	A COPY OF THE ORDER NO.R10/42346/15 DATED 10/10/2018.
EXHIBIT R13(3)	ONE OF THE NEWS ITEM PUBLISHED IN THE MANORAMA DAILY DATED 09/10/2018.
EXHIBIT R13(4)	COPY OF THE LETTER NO.R10-42346/15 DATED 12/10/2018.
EXHIBIT R13(5)	A COPY OF THE LETTER DATED R.10-42346/15 DATED 12/10/2015.
EXHIBIT R13(6)	COPY OF LETTER NO.R10-42346/15 26.10.2018.
EXHIBIT - R15(B)	TRUE COPY OF THE MINUTES OF THE MEETING DATED 9/1/21 OF THE COMMITTEE FOR REMOVAL OF UNAUTHORIZED BOARDS
EXHIBIT - R15(C)	TRUE COPY OF ORDER DATED 26/4/22 ISSUED BY THE SECRETARY OF THRISSUR CORPORATION

EXHIBIT- R15-(D)	TRUE COPY OF ORDER DATED 24/12/22 ISSUED BY THE THRISSUR CORPORATION
EXHIBIT - R15(E)	TRUE COPY OF LIST OF BOARDS REMOVED FROM THE OLLUKKARA ZONAL LIMITS OF THRISSUR CORPORATION ON 18/10/22
EXHIBIT - R15(F)	TRUE COPY OF LIST OF BOARDS REMOVED FROM HE VILVATTOM ZONAL LIMITS OF THRISSUR CORPORATION DATED 18/10/22
EXHIBIT - R15(G)	TRUE COPY OF LIST OF BOARDS REMOVED FROM THE KOORKKANANCHERRY ZONAL LIMITS OF THRISSUR CORPORATION DATED 18/10/22
EXHIBIT - R15(H)	); TRUE COPY OF LIST OF BOARDS REMOVED FROM THE SWARAJ ROUND PREMISES OF THRISSUR CORPORATION DATED 18/10/22
EXHIBIT - R15(I)	TRUE COPY OF LIST OF BOARDS REMOVED FROM THE SWARAJ ROUND PREMISES OF THRISSUR CORPORATION DATED 18/10/22
EXHIBIT R13(6)	COPY OF LETTER NO.R10-42346/2015 DATED 26/10/2018.
ANNEXURE R18(A)	DETAILS OF REGISTERED CASES RECEIVED FROM THE DISTRICT POLICE CHIEFS
ANNEXURE R19(A)	THE PHOTOCOPY OF THE LETTER NO.4/3/99/J/S II DATED 16.7.1999 ISSUED BY THE 19TH RESPONDENT HEREIN TO ALL RECOGNIZED NATIONAL AND STATE POLITICAL PARTIES IN INDIA.
ANNEXURE R19(B)	THE PHOTOCOPY OF THE LETTER DATED 7.5.1999 OF THE CHAIRMAN, WORLD WIDE FUND FOR NATURE INDIA
ANNEXURE R19(C)	THE PHOTOCOPY OF THE LETTER NO.4/3/2003/JS-II/VOL.I DATED 1.5.2003 ISSUED BY THE 19TH RESPONDENT HEREIN TO ALL RECOGNISED NATIONAL AND STATE POLITICAL PARTIES IN INDIA.
ANNEXURE R19(D)	THE PHOTOCOPY OF THE LETTER NO.4/3/2004/JS-II/VOL.I DATED 11.3.2004 ISSUED BY THE 19TH RESPONDENT HEREIN TO ALL RECOGNISED NATIONAL AND STATE POLITICAL PARTIES IN INDIA.
ANNEXURE R19(E)	THE PHOTOCOPY OF THE LETTER NO.4/3/2006/JS-II/2159-2193 DATED 16.3.2006 ISSUED BY THE 19TH RESPONDENT HEREIN TO ALL RECOGNIZED NATIONAL AND STATE POLITICAL PARTIES IN INDIA.
ANNEXURE R19(F)	THE PHOTOCOPY OF THE LETTER NO.4/3/2016/SDR DATED 5.4.2016 ISSUED BY THE 19TH RESPONDENT HEREIN TO ALL RECOGNIZED NATIONAL AND STATE POLITICAL PARTIES IN INDIA.
ANNEXURE R19(G)	THE PHOTOCOPY OF THE INSTRUCTION NO.53 ISSUED BY THE 19TH RESPONDENT HEREIN VIDE LETTER NO.3/9/2004/JS-II DATED 24-8-2004 ADDRESSED TO THE CHIEF ELECTORAL OFFICERS OF ALL STATES AND UNION TERRITORIES IN INDIA.
ANNEXURE R19(H)	THE PHOTOCOPY OF THE INSTRUCTION ISSUED BY THE 19TH RESPONDENT

HEREIN VIDE LETTER NO.3/9/2007/JS-II DATED 16.10.2007 ADDRESSED TO THE CHIEF SECRETARIES AND CHIEF ELECTORAL OFFICERS OF ALL STATES AND UNION TERRITORIES IN INDIA.

- ANNEXURE R19(I) THE PHOTOCOPY OF THE INSTRUCTION NO.61 ISSUED BY THE 19TH RESPONDENT HEREIN VIDE LETTER NO.3/7/2008/JS-II DATED 7.10.2008 ADDRESSED TO THE CHIEF SECRETARIES AND CHIEF ELECTORAL OFFICERS OF ALL STATES AND UNION TERRITORIES IN INDIA.
- ANNEXURE R19(J) THE PHOTOCOPY OF THE INSTRUCTION NO.62 ISSUED BY THE 19TH RESPONDENT HEREIN VIDE LETTER NO.3/7/2008/JS-II/SDR DATED 10.11.2008 AND ADDRESSED TO THE CHIEF SECRETARIES OF ALL STATES AND UNION TERRITORIES.
- ANNEXURE R19(K) THE PHOTOCOPY OF THE INSTRUCTION ISSUED BY THE 19TH RESPONDENT HEREIN VIDE LETTER NO.437/6/INST/2012-CC&BE DATED 18-01-2012 ADDRESSED TO THE CHIEF SECRETARIES AND CHIEF ELECTORAL OFFICERS OF ALL STATE AND UNION TERRITORIES IN INDIA.
- ANNEXURE R19(L) THE PHOTOCOPY OF THE INSTRUCTION ISSUED BY THE 19TH RESPONDENT HEREIN VIDE LETTER NO.3/7/2014/SDR DATED 11.3.2014 ADDRESSED TO THE CHIEF SECRETARIES AND CHIEF ELECTORAL OFFICERS OF ALL STATES AND UNION TERRITORIES IN INDIA.
- ANNEXURE R19(M) THE PHOTOCOPY OF THE INSTRUCTION ISSUED BY THE 19TH RESPONDENT HEREIN VIDE LETTER NO.4/LET/ECI/FUNC/JUD/SDR/2016 DATED 25.7.2016 ADDRESSED TO THE CHIEF SECRETARIES AND CHIEF ELECTORAL OFFICERS OF ALL STATES AND UNION TERRITORIES IN INDIA.
- ANNEXURE R19(N) THE PHOTOCOPY OF THE STATEMENT (WITHOUT ANNEXURES) FILED BY THE 19TH RESPONDENT HEREIN BEFORE THIS HON'BLE COURT IN WP(C)NO.9609/2016 DATED 19.3.2016.
- ANNEXURE R19(O) THE PHOTOCOPY OF THE JUDGMENT OF THIS HON'BLE COURT DATED 22.3.2016 IN WPC 9609/2016.
- ANNEXURE R19(P) THE TRUE COPY OF THE INSTRUCTION ISSUED BY THE 19TH RESPONDENT HEREIN VIDE LETTER NO.509/241/ECI/LET/FUNC/JUD/RCC/2011 DATED 20-4-2018 ADDRESSED TO THE CHIEF SECRETARIES AND CHIEF ELECTORAL OFFICERS OF ALL STATES AND UNION TERRITORIES IN INDIA.
- ANNEXURE R19(Q) THE PHOTOCOPY OF CIRCULAR NO.4/3/2019/SDR DATED 26.2.2019 OF THE ELECTION COMMISSION OF INDIA.
- ANNEXURE R19(R) THE PHOTOCOPY OF THE G.O.(RT)NO.118/2019/ELEC.DATED 12.3.2019 ISSUED BY THE CHIEF ELECTORAL OFFICER, ELECTION DEPARTMENT, GOVERNMENT OF KERALA.
- ANNEXURE R20(A) THE PHOTOCOPY OF THE KERALA PREVENTION OF DEFAACEMENT OF PROPERTY BILL, 2013 SUBMITTED BY THE STATE ELECTION COMMISSION, KERALA BEFORE THE GOVERNMENT.
- ANNEXURE R20(B) THE PHOTOCOPY OF LETTER NO.3969/H/2012/SEC DATED 13.6.2014 OF THE 20TH RESPONDENT FORWARDING ANNEXURE R20 (A) TO THE 2ND RESPONDENT.
- ANNEXURE R20(C) THE PHOTOCOPY OF THE CIRCULAR NO.B1/22671/2019/SEC DATED 22.3.2019 ISSUED BY THE 20TH RESPONDENT.
- EXHIBIT R6(M) THE PHOTOCOPY OF THE NOTICE NO.R18/94729/13 DATED 31.10.2018 ISSUED BY THE SECRETARY, CORPORATION OF THIRUVANANTHAPURAM.
- EXHIBIT R6(N) THE PHOTOSTAT COPY OF THE NOTICE NO.R18/94729/13 DATED 29.11.2018 ISSUED BY THE SECRETARY, CORPORATION OF THIRUVANANTHAPURAM.

EXHIBIT R16(A)	A TRUE COPY OF THE ORDER DATED 29.10.2018.
EXHIBIT R17(A)	TRUE COPY OF THE CIRCULAR NO.57850/RC4/2008/LSGD ISSUED ON 8.1.2010.
EXHIBIT R17(B)	TRUE COPY OF THE CIRCULAR NO.71806/RC2/2012/LSGD ISSUED ON 25.10.2013.
EXHIBIT R17(C)	TRUE COPY OF THE CIRCULAR NO.14/RC2/2018/LSGD DATED 7.3.2018.
EXHIBIT R17(D)	TRUE COPY OF THE CIRCULAR NO.RC2/41/18/LSGD DATED 6.10.2018.
EXHIBIT R17(E)	TRUE COPY OF G.O.(RT)NO.2733/18/LSGD DATED 26.10.2018.
EXHIBIT R17(F)	TRUE COPY OF G.O.(RT)NO.113/2019/LSGD DATED 21.1.2019.
EXHIBIT R21(A)	TRUE COPY OF THE NOTICE DATED 24.6.2019.
EXHIBIT R21(B)	TRUE COPY OF THE CIRCULAR R.C.2/41/2018/LSGD DATED 20.7.2019.
ANNEXURE I	TRUE COPY OF THE CIRCULAR ISSUED BY THE STATE POLICE CHIEF CIRCULAR NO.90/2020 DATED 8.2.2020.
ANNEXURE II	TRUE COPY OF THE DIRECTION ISSUED BY THE COMMISSIONER OF ROAD SAFETY LR.NO.A2/121/KRSA/2013 DATED 6.2.2020.
ANNEXURE-R11(A)	THE DETAILS FURNISHED BY THE SECRETARY OF THE 11TH RESPONDENT DISCLOSING THE REMOVAL OF UNAUTHORIZED FLEX BOARDS, BANNERS AND FESTOONS, NUMBER OF FIR'S.
ANNEXURE A31	TRUE PHOTOGRAPHS PERTAINING TO THE FLEX BOARD ERECTED BY THE GOVERNMENT IN FRONT OF GOVT SECRETARIATE, THIRUVANANTHAPURAM
ANNEXURE A32	TRUE PHOTOGRAPHS PERTAINING TO THE FLEX BOARDS ERECTED IN OTHER PARTS OF THE THIRUVANANTHAPURAM CITY, ABUTTING THE ROAD, ESPECIALLY AT THAMPANOOR
ANNEXURE A33	TRUE PHOTOGRAPHS OF ERECTION OF THE BOARDS, FLAGS, FESTOONS IN KOTTAYAM MUNICIPAL CORPORATION AREA
ANNEXURE A34	A PHOTOGRAPH OF ONE OF THE BOARDS ERECTED ENCROACHING THE PUBLIC PATHWAY AT MARINE DRIVE, ERNAKULAM
ANNEXURE A35	A PHOTOGRAPH OF ONE OF THE BOARD IN RELATION TO THE G20 2023 BEING HELD AT KUMARAKOM
ANNEXURE A36	A PHOTOGRAPH OF ONE OF THE BOARD ERECTED IN TRIVANDRUM CITY
ANNEXURE A37	A TRUE PHOTOCOPY OF THE ORDER S.O (ORDINARY) NO. 3075/2022/LSGD DATED 12.12.2022 ISSUED BY THE DEPARTMENT OF LOCAL SELF GOVERNMENT INSTITUTIONS
ANNEXURE A38	A TRUE PHOTOCOPY OF THE ORDER NO. S.O (ORDINARY) NO. 639/ 2023/ LSGD DATED 17.03.2023 ISSUED BY THE DEPARTMENT OF LOCAL SELF GOVERNMENT

INSTITUTIONS

ANNEXURE A39	A TRUE PHOTOCOPY OF THE CIRCULAR DATED 19.06.2023 ISSUED BY THE DEPARTMENT OF LOCAL SELF GOVERNMENT INSTITUTIONS
ANNEXURE A40	A TRUE COLOUR COPY OF THE PHOTOGRAPHS OF THE ILLEGAL FLEX BOARDS, HOARDINGS ERECTED IN VARIOUS PARTS OF KOCHI CORPORATION, THRIKKAKARA, THRIPPUNITHURA AND KALAMASERRY MUNICIPALITIES
ANNEXURE A41	A TRUE PHOTOCOPY OF THE COMMUNICATION NO. HC/25/2024 DATED 12.06.2024 ISSUED TO THE COMMISSIONER OF POLICE, KOCHI CITY
EXHIBIT-R12(A)	A TRUE COPY OF THE FIR IN CRIME NO.38/2025 OF CANTONMENT POLICE STATION
EXHIBIT-R12(B)	A TRUE COPY OF THE NEWSPAPER REPORT PUBLISHED IN MALAYALA MANORAMA DAILY DATED 01.01.2025
ANNEXURE A42	TRUE COPY OF THE NEWSPAPER REPORT DATED 28.01.2025 PUBLISHED IN MALAYALA MANORAMA DAILY
ANNEXURE A43	A TRUE COPY OF THE SCREENSHOT OF THE COMPLAINT DATED 20.01.2025, SUBMITTED BY ADVOCATE JACOB MATHEW
ANNEXURE A44	A TRUE COPY OF THE SCREENSHOT OF THE SHO S REPLY DATED 20.01.2025
ANNEXURE A45	. TRUE COPY OF COMMUNICATION DATED 10.01.2025 OF TRISSUR CITY POLICE COMMISSIONER
ANNEXURE A46	TRUE COPY OF THE NEWSPAPER REPORT DATED 17.01.2025 PUBLISHED IN MALAYALA MANORAMA
ANNEXURE A47	A TRUE COPY OF THE NEWS PAPER REPORT IN MATHRUBHUMI DAILY ON 06.02.2025
ANNEXURE A48	A TRUE PHOTO OF THE ILLEGALLY ERECTED BOARDS IN THAMMANAM AREA
ANNEXURE A49	A TRUE PHOTOCOPY OF FIR NO. 520 OF 2025 DATED 04.03.2025, REGISTERED AT MUVATTUPUZHA POLICE STATION
ANNEXURE A50	THE GOVERNMENT ORDER PASSED BY THE DISASTER MANAGEMENT DEPARTMENT ON 24.06.2015 UNDER THE PROVISIONS OF DISASTER

MANAGEMENT ACT 2005

APPENDIX IN W.P.(C)NO.25784 OF 2018:

PETITIONER'S EXHIBITS:

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|-------------|--|
| EXHIBIT P1. | A COPY OF THE LEASE AGREEMENT DATED 01.06.2018 WITH THE SCHOOL AUTHORITY AND THE PETITIONER. |
| EXHIBIT P2. | A COPY OF THE COMPLAINT DATED 24.06.2018 FILED BY THE PETITIONER BEFORE THE C.I. OF POLICE, KODUNGALLUR. |
| EXHIBIT P3. | PHOTOGRAPH SHOWING THE UNAUTHORIZED HOARDING. |
| EXHIBIT P4. | A COPY OF THE COMPLAINT DATED 13.07.18 FILED BY MR.P.J.MADANAN BEFORE THE 2ND RESPONDENT. |

RESPONDENTS' EXHIBITS:

- | | |
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| EXHIBIT R(o) | THE PHOTOSTAT COPY OF THE LETTER NO.R18/94729/13 DATED 13-03-2019 ISSUED BY THE SECRETARY, CORPORATION OF THIRUVANANTHAPURAM, TO THE DISTRICT POLICE CHIEF, THIRUVANANTHAPURAM. |
| EXHIBIT R(p) | THE PHOTOSTAT COPY OF THE LIST OF ESTABLISHMENTS CITY TRAFFIC POLICE DIVIDER, M.G.ROAD, TVM. |
| EXHIBIT R(q) | THE PHOTOSTAT COPY OF THE REPORT SUBMITTED BY THE CHARGE OFFICER OF THE VATTIYOORKAVU ZONAL OFFICE DATED 11-03-2019 BEFORE THE SECRETARY, TRIVANDRUM CORPORATION. |
| EXHIBIT R(r) | THE PHOTOSTAT COPY OF RECEIPT ISSUED FROM THE OFFICE OF THE DISTRICT POLICE CHIEF NO.G9/19819/2019TC DATED 15-03-2019. |
| EXHIBIT R7 | ORDER ISSUED BY THE SECRETARY OF THE CORPORATION ON 15.11.2018. |
| EXHIBIT R7(1) | A COPY OF THE CAUSE LIST DATED 23.10.2018. |
| EXHIBIT R7(2) | A COPY OF THE ORDER NO.R10/42341/15 DATED 10.10.2018. |
| EXHIBIT R7(3) | ONE OF THE NEWS ITEM PUBLISHED IN THE MANORAMA DAILY DATED 9.10.2018. |
| EXHIBIT R7(4) | COPY OF THE LETTER NO.R10-42346/15 DT 12.10.2018. |
| EXHIBIT R7(5) | COPY OF THE LETTER DT.r10-42346/15 DATED 12.10.2015. |
| EXHIBIT R7(6) | COPY OF LETTER NO.R10-42346/15 26.10.2018. |
| EXHIBIT R10(a) | A TRUE COPY OF THE ORDER DATED 29.10.2018. |
| EXHIBIT R6(a) | THE PHOTOSTAT COPY OF THE GOVERNMENT ORDER NO.R.C.2/41/2018/LSGD DATED 6.10.2018 ISSUED BY THE GOVERNMENT. |
| EXHIBIT R6(b) | THE PHOTOSTAT COPY OF TH EORDER NO.R18/94729/13 DATED 6.10.2018 ISSUED BY THE |

DEPUTY SECRETARY, CORPORATION OF TRIVANDRUM, REVENUE NON TAX DEPARTMENT.

- EXHIBIT R6(c) THE PHOTOSTAT COPY OF THE ORDER NO.R18/94729/13 DATED 10.10.2018 ISSUED BY THE REVENUE OFFICER, CORPORATION OF TRIVANDRUM.
- EXHIBIT R6(d) THE PHOTOSTAT COPY OF THE REPRESENTATION NO.R18/94729/13 DATED 11.10.2018 ISSUED BY THE SECRETARY, CORPORATION OF THIRUVANANTHAPURAM, TO THE CITY POLICE COMMISSIONER.
- EXHIBIT R6(e) THE PHOTOSTAT COPY OF THE ORDER NO.G1/21812/18 DATED 10.10.2018 ISSUED BY THE JOINT DIRECTOR (HEALTH), DIRECTOR OF URBAN AFFAIRS.
- EXHIBIT R6(f) THE PHOTOSTAT COPY OF THE ORDER NO.R18/97429/18 DATED 25.10.2018 ISSUED BY THE SECRETARY, CORPORATION OF THIRUVANANTHAPURAM.
- EXHIBIT R6(g) THE PHOTOSTAT COPY OF THE LETTER NO.R18/94729/13 DATED 26.10.2018 ISSUED BY THE SECRETARY, TO THE CITY POLICE COMMISSIONER.
- EXHIBIT R6(h) THE PHOTOSTAT COPY OF THE LETTER NO.R18/94729/13 DATED 26.10.2018 ISSUED BY THE SECRETARY CORPORATION OF THIRUVANTHAPURAM, TO THE DISTRICT COLLECTOR, THIRUVANANTHAPURAM.
- EXHIBIT R6(i) THE PHOTOSTAT COPY OF THE DRAFT NOTICE ISSUED BY THE CORPORATION IN THE PRINT MEDIA INFORMING THE STAKE HOLDERS (THROUGH MAYOR SECTION)
- EXHIBIT R6(j) THE PHOTOSTAT COPY OF THE ORDER NO.R18/94729/18 DATED 26.10.2018 ISSUED BY THE SECRETARY, CORPORATION OF THIRUVANANTHAPURAM, TO THE REVENUE INSPECTOR, CIRCLE 3.
- EXHIBIT R6(k) THE PHOTOSTAT COPY OF THE STATEMENT SENT BY THE CORPORATION TO THE DIRECTOR OF URBAN AFFAIRS DATED 15.10.2018.
- EXHIBIT R6(l) THE PHOTOSTAT COPY OF THE RESOLUTION NO.3(A)28 DATED 10.5.2018 ISSUED BY THE MAYOR, CORPORATION OF THIRUVANANTHAPURAM.

APPENDIX IN W.P.(C)NO.42574 OF 2018**RESPONDENTS' EXHIBITS:**

ANNEXURE 1	TRUE COPY OF THE RESOLUTION DATED 20.10.2018 PASSED BY UDAYAMPEROOR GRAMA PANCHAYAT.
ANNEXURE 2	TRUE COPY OF THE NOTICE DATED 25.10.2018 ISSUED TO JUNIOR TELECOM OFFICER, BSNL, CHOTTANIKKARA.
ANNEXURE 3	TRUE COPY OF THE NOTICE DATED 25.10.2018 TO THE ASSISTANT EXECUTIVE ENGINEER, KERALA STATE ELECTRICITY BOARD, THRIUPUNITHURA.
ANNEXURE 4	TRUE COPY OF THE NOTICE DATED 25.10.2018 TO THE ASSISTANT ENGINEER, ELECTRICAL SECTION OFFICE, UDAYAMPEROOR
ANNEXURE 5	TRUE COPY OF THE NOTICE DATED 25.10.2018 TO THE SUB DIVISIONAL ENGINEER, UDAYAMPEROOR
ANNEXURE 6	TRUE COPY OF THE MUSTER ROLL
ANNEXURE 7	TRUE COPY OF THE PROCEEDING DATED 1.3.2019 TAKEN ON THE MEETING CONVENED ON 1.3.2019 BY THE UDAYAMPEROOR GRAMA PANCHAYAT
ANNEXURE 8	TRUE COPY OF THE CERTIFICATE OF SECRETARY, UDAYAMPEROOR GRAMA PANCHAYAT SHOWING THE PUBLICATION.
ANNEXURE 9	TRUE COPY OF THE RESOLUTION PASSED BY THE UDAYAMPEROOR GRAMA PANCHAYAT COMMITTEE ON 6.3.2019.
ANNEXURE 10	TRUE COPY OF THE NOTICE DATED 3.6.2019 ISSUED TO SMT.DEEPA, KOKKAPPALLY.
ANNEXURE 11	TRUE COPY OF THE NOTICE DATED 3.6.2019 ISSUED TO BABU C, EAST AMBADY
ANNEXURE 12	TRUE COPY OF THE NOTICE DATED 3.6.2019 ISSUED TO JAYACHANDRAN, PUTHUVALIL.
ANNEXURE 13	TRUE COPY OF THE NOTICE DATED 3.6.2019 ISSUED TO SMITHA SABU.
ANNEXURE 14	TRUE COPY OF THE NOTICE DATED 3.6.2019 ISSUED TO BINO.
ANNEXURE 15	TRUE COPY OF THE NOTICE DATED 4.6.2019 ISSUED BY SECRETARY, UDAYAMPEROOR GRAMA PANCHAYAT.
ANNEXURE 16	TRUE COPY OF THE PROCEEDINGS DATED 4.6.2019 TAKEN BY UDAYAMPEROOR GRAMA PANCHAYAT IN THE MEETING OF THE PANCHAYAT STAFF CONVENED ON 4.6.2019.
ANNEXURE 17	TRUE COPY OF THE BILL FOR RS.5000/- FOR MIKE ANNOUNCEMENT
ANNEXURE 18	TRUE COPY OF THE NOTICE DATED 6.6.2019 ISSUED TO SIBI ALEX.
ANNEXURE 19	TRUE COPY OF THE NOTICE DATED 7.6.2019 ISSUED TO SMT.SALMA

ANNEXURE 20	TRUE COPY OF THE NOTICE DATED 7.6.2019 ISSUED TO SANTHOSH.
ANNEXURE 21	TRUE COPY OF THE LETTER DATED 10.6.2019 ISSUED TO THE DEPUTY DIRECTOR OF THE PANCHAYAT
ANNEXURE 22	TRUE COPY OF THE NOTICE DATED 10.6.2019 ISSUED TO THE DISTRICT COLLECTOR, ERNAKULAM.
ANNEXURE 23	TRUE COPY OF THE NOTICE DATED 10.6.2019 ISSUED TO STATION HOUSE OFFICER, UDAYAMPEROOR POLICE STATION.
ANNEXURE 24	TRUE COPY OF THE NOTICE DATED 10.7.2019 ISSUED TO THE STATION HOUSE OFFICER, UDAYAMPEROOR POLICE STATION
ANNEXURE 25	TRUE COPY OF THE NOTICE DATED 11.6.2019 ISSUED TO SAJI, KATTIKKUNNEL.
ANNEXURE 26	TRUE COPY OF THE NOTICE DATED 11.6.2019 ISSUED TO BALAGOPAL
ANNEXURE 27	TRUE COPY OF THE NOTICE DATED 11.6.2019 ISSUED TO SAJEEVAN
ANNEXURE 28	TRUE COPY OF THE NOTICE DATED 9.7.2019 ISSUED TO SIRAJ, POOTHOTTA
ANNEXURE 29	TRUE COPY OF THE NOTICE DATED 15.7.2019 ISSUED TO SHINE.
ANNEXURE 30	TRUE COPY OF THE NOTICE DATED 9.7.2019 ISSUED TO DAISY SHAJI.
EXHIBIT-R20(A)	A TRUE COPY OF THE REGISTRATION CERTIFICATE BEARING NO.TSR/TC/330/2023 DATED 05-07-2023 OF THE APPLICANT SOCIETY.
EXHIBIT- R20(B)	A TRUE COPY OF THE MEMORANDUM OF ASSOCIATION, DATED 14-06-2023, OF THE APPLICANT SOCIETY.
EXHIBIT R10 (A)	A TRUE COPY OF THE ORDER DATED 05.03.2019 ISSUED BY THE SECRETARY, NEDUMBASSERY GRAMA PANCHAYATH
EXHIBIT R 10 (B)	A TRUE COPY OF THE PUBLIC NOTICE DATED 07.09.2019 ISSUED BY THE SECRETARY, DEDUMBASSERY GRAMA PANCHAYATH
EXHIBIT 10 (C)	A TRUE COPY OF THE CASH RECEIPT DATED 21.08.2019 ISSUED TO THE OFFICE BEARER OF DYFI NEDUMBASSERY MEKAHLA COMMITTEE
EXHIBIT R11 (A)	COPY OF THE MINUTES OF THE MEETING OF THE PANCHAYATH DATED 12/10/2018
EXHIBIT R11 (B)	COPY OF THE PUBLIC NOTICE NO.D-3 4421/18 DATED 15/10/2018 ISSUED BY THE PANCHAYATH
EXHIBIT R 11 (C)	COPY OF THE NOTICE NO.D3-4421/18 DATED 31/10/2018 ISSUED BY THE PANCHAYATH
EXHIBIT R11 (D)	COPY OF THE COMMUNICATION NO.D3-4421/18 DATED 31/10/2018 ISSUED BY THE PANCHAYATH TO THE KSEB
EXHIBIT R11 (E)	COPY OF THE COMMUNICATION NO.D3-4421/18 DATED 31/10/2018 ISSUED BY THE PANCHAYATH TO THE NH/PWD
EXHIBIT R11(F)	COPY OF THE PROCEEDINGS NO.C-21/2018 DATED 23/10/2018 ISSUED BY THE PANCHAYATH
EXHIBIT R11(G)	COPY OF THE PROCEEDINGS NO.C-3/19 DATED 23/1/2019 ISSUED BY THE PANCHAYATH
EXHIBIT R11(H)	COPY OF THE PROCEEDINGS NO.6/19 DATED 2/3/2019 ISSUED BY THE PANCHAYATH

EXHIBIT R11(I)	COPY OF THE NOTICE NO.E-454/2019 DATED 6/7/2019 ISSUED BY THE PANCHAYATH TO THE PRESIDENT
EXHIBIT R11(J)	COPY OF THE PROCEEDINGS NO.C-31/2019 DATED 19/10/2019 ISSUED BY THE PANCHAYATH
EXHIBIT R11(K)	COPY OF THE NOTICE NO.E-4576/2019 DATED 19/10/2019 ISSUED BY THE PANCHAYATH TO THE SECRETARY, DYFI, NENMANIKKARA/PALIYEKKARA
EXHIBIT R11(L)	COPY OF THE CASH RECEIPT DATED 26/10/2019
EXHIBIT R11(M)	COPY OF THE CIRCULAR NO.G2-103712/19 DATED 9/8/2019 ISSUED BY THE DIRECTOR OF PANCHAYATH
EXHIBIT R12(A)	COPY OF THE NOTICE NO.A6-6546-18 DATED 15.10.2018 ISSUED BY THE PANCHAYAT TO THE AFFECTED PARTIES / POLITICAL PARTIES.
EXHIBIT R12(B)	COPY OF THE PRESS RELEASE/PUBLICATION DATED 16.10.2018 ISSUED BY THE PANCHAYATH.
EXHIBIT R12(C)	COPY OF THE CASH BILL OF THE AJMAL LIGHT AND SOUND DATED 27.10.2018.
EXHIBIT R12(D)	COPY OF THE NOTICE NO.A6-6546/18 DATED 2.3.2019 ISSUED BY THE PANCHAYATH TO THE S.I OF POLICE, KAIPPAMANGALAM STATION.
EXHIBIT R12(E)	COPY OF THE RELEVANT EXTRACT OF THE AUCTION DAIRY ON 5.3.2019 CONTAINING THE DETAILS BY THE PANCHAYATH.
EXHIBIT R12(F)	COPY OF THE CIRCULAR NO.G2-103712/19 DATED 9.8.2019 ISSUED BY THE DIRECTOR OF PANCHAYATH.
EXHIBIT R12(G)	COPY OF THE NOTICE NO.A6-6546/18 DATED 16.8.2019 ISSUED BY THE PANCHAYATH TO THE SECRETARY, DYFI KAIPPAMANGALAM MEGALA COMMITTEE.
EXHIBIT R12(H)	COPY OF THE RECEIPT DATED 19.10.2019.
EXHIBIT R17(A)	COPY OF THE NEW REPORT WHICH APPEARED IN MALAYALAMANORAM DAILY DATED 21/10/2018
EXHIBIT R17(B)	COPY OF THE LETTER VIDE NO.A8/6901/2018 DATED 26/10/2018 ISSUED BY THE PANCHAYATH TO THE ASSISTANT EXECUTIVE ENGINEER, KSEB.
EXHIBIT R17(C)	COPY OF THE NOTICE NO.A8-6901/18 DATED 2/8/2019 ISSUED BY THE PANCHAYATH TO SRI.RAGESH, YOUTH CONGRESS MANDALAM PRESIDENT, VALAPPAD.
EXHIBIT R17(D)	COPY OF THE NOTICE NO.A8-6901/18 DATED 2/8/2019 ISSUED BY THE PANCHAYATH TO SRI K.V.MOHANAN MASTER, CONGRESS MANDALAM PRESIDENT, VALAPPAD.
EXHIBIT R17(E)	COPY OF THE NOTICE NO.A8-6901/18 DATED 2/8/2019 ISSUED BY THE PANCHAYATH TO SRI SIJU THAYIL, PRESIDENT BJP MANDALAM COMMITTEE, VALAPPAD.
EXHIBIT R17(F)	COPY OF THE NOTICE NO.A8-6901/18 DATED 2/8/2019 ISSUED BY THE PANCHAYATH TO SRI.A.G.SUBHASH, SECRETARY, CPI LOCAL COMMITTEE, VALAPPAD.
EXHIBIT R17(G)	COPY OF THE NOTICE NO.A8-6901/18 DATED 2/8/2019 ISSUED BY THE PANCHAYATH TO SRI.K.K.KISHORE, DYFI MEGALA SECRETARY, VALAPPAD.

EXHIBIT R17(I)	COPY F THE NOTICE NO.A8-6901/18 DATED 2/8/2019 ISSUED BY THE PANCHAYATH TO THE MANAGING DIRECTOR, MANAPPURAM FOUNDATION, VALAPPAD.
EXHIBIT R17(J)	COPY OF THE CIRCULAR NO.G2-103712/19 DATED 9/8/2019 ISSUED BY THE DIRECTOR OF PANCHAYATH, THIRUVANANTHAPURAM
EXHIBIT R17(K)	COPY OF THE ORDER NO.23/19 DATED 9/8/2019 ISSUED BY THE PANCHAYATH
EXHIBIT R17(L)	COPY OF THE CASH RECEIPT DATED 16/10/2019
EXHIBIT R17(M)	COPY OF THE CASH RECEIPT DATED 25/10/2019
EXHIBIT R18(A):	COPY OF THE NOTICE NO.A5-4137/18 DATED 24/10/2018 ISSUED BY THE PANCHAYATH TO THE HORIZONE ONLINE SERVICE, TRIPPAYAR.
EXHIBIT R18(B):	COPY OF THE NOTICE NO.A5-4137/18 DATED 24/10/2018 ISSUED BY THE PANCHAYATH TO THE REGIONAL TRANSPORT OFFICER, TRIPPAYAR.
EXHIBIT R18(C):	COPY OF THE NOTICE NO.A5-4137/18 DATED 24/10/2018 ISSUED BY THE PANCHAYATH TO THE EXECUTIVE ENGINEER, PWD.
EXHIBIT R18(D):	COPY OF THE NOTICE NO.A7-4137/18 DATED 27/10/2018 ISSUED BY THE PANCHAYATH TO THE ASSISTANT ENGINEER, VALAPPAD.
EXHIBIT R18(F):	COPY OF THE PAYMENT DETAILS DATED 19/03/2019 BY THE PANCHAYATH.
EXHIBIT R18(E):	COPY OF THE NOTICE NO.A7-4137/18 DATED 27/10/2018 ISSUED BY THE PANCHAYATH TO THE MANAGER, BSNL, VALAPPAD.
EXHIBIT R18(G):	COPY OF THE NOTICE NO.A7-1057/19 DATED 06/03/2019 ISSUED BY THE PANCHAYATH TO SRI.CHAKRAPANI, MANDALAM PRESIDENT, CONGRESS, NATTIKA.
EXHIBIT R18(H):	COPY OF THE NOTICE NO.A7-1057/18 DATED 06/03/2019 ISSUED BY THE PANCHAYATH TO SRI.HAMSA,SECRETARY, LOCAL COMMITTEE CPI (M), NATTIKA.
EXHIBIT R18(I):	COPY OF THE NOTICE NO.A7-1057/19 DATED 06/03/2019 ISSUED BY THE PANCHAYATH TO SRI.P.A.NIYAS, SECRETEARY, MUSLIMLEAGUE, CPI, NATTIKA.
EXHIBIT R18(J):	COPY OF THE NOTICE NO.A7-1057/18 DATED 06/03/2019 ISSUED BY THE PANCHAYATH TO SRI.PRADEEP, SECRETARY, LOCAL COMMITTEE CPI, NATTIKA.
EXHIBIT R18(K):	COPY OF THE NOTICE NO.A7-1057/18 DATED 06/03/2019 ISSUED BY THE PANCHAYATH TO SRI.CHANDRASEKHARAN, MANDALAM PRESIDENT, BJP, NATTIKA.
EXHIBIT R18(L):	COPY OF THE CIRCULAR NO.G2-103712/19 DATED 09/08/2019 ISSUED BY THE DIRECTOR OF PANCHAYATH.
EXHIBIT R18(M):	COPY OF THE NOTICE NO.A7-1057/19 DATED 16/08/2019 ISSUED BY THE PANCHAYATH TO THE DYFI NATTIKA PANCHAYATH COMMITTEE.
EXHIBIT R18(N):	COPY OF THE CASH RECEIPT NO.3898176 DATED 25/10/2019.
EXHIBIT R16(A)	COPY OF THE NOTICE NO.A7-7592/18 DATED 12/10/2018 ISSUED BY THE PANCHAYATH TO THE POLITICAL PARTIES AND VYAPARI VYAVASAYI EKOPANA SAMATHI

EXHIBIT R16(B)	COPY OF THE MINUTES OF THE PANCHAYATH DATED 23/10/2018
EXHIBIT R16(C)	COPY OF THE LETTER NO.A7-7592/18 DATED 27/10/2018 ISSUED BY THE PANCHAYATH TO THE KSEB AND BSNL
EXHIBIT R16(D)	COPY OF THE LETTER NO.A7-7592/18 DATED 1/3/2019 ISSUED BY THE PANCHAYATH TO THE POLITICAL PARTIES AND VYAPARI VYAVASAYI EKOPANA SAMATHI
EXHIBIT R16(E)	COPY OF THE NOTICE NO.A7-7592/18 DATED 5/3/2019 ISSUED BY THE PANCHAYATH TO THE NEWS PAPERS IN MALAYALA MANORAMA, DESHABHIMAI, MATHRUBHUMI AND VEESHANAM
EXHIBIT 16(F)	COPY OF THE NOTICE DATED 30/7/2019 ISSUED BY THE PANCHAYATH.
EXHIBIT R16(G)	COPY OF THE RECEIPT DATED 5/8/2019 ISSUED BY THE STAR OFFSET PRINTERS TO THE PANCHAYTH.
EXHIBIT R16(H)	COPY OF THE RECEIPT FROM STAR OFFSET PRINTERS DATED 15/10/2019 ISSUED TO THE PANCHAYATH
EXHIBIT R16(I)	COPY OF THE CIRCULAR NO.G2-103712/19 DATED 9/8/2018 ISSUED BY THE DIRECTOR OF PANCHAYATH
EXHIBIT R16(J)	COPY OF LETTER NO.A8(A7)-3883/2009 DATED 3/9/2019 ISSUED TO THE EXEUTIVE ENGINEER TO THE SECRETARY,PANCHAYATH.
EXHIBIT R13(A)	COPY OF THE LETTER NO. A9-5935/2018 DATED 16.10.2018 ISSUED BY THE PANCHAYATH
EXHIBIT R13 B	COPY OF THE LETTER NO. A9-5935/2018 DATED 17.10.2018 ISSUED BY THE PANCHAYATH TO THE MEDIA'S
EXHIBIT R13 C	COPY OF THE PAYMENT DETAILS BY THE PANCHAYATH TO SAJILA LIGHTS AND SOUNDS DATED 16.03.2019
EXHIBIT R13 D	COPY OF RELEVANT EXTRACT OF CONTAINING THE NAME AND SIGNATURES WHO ATTENDED THE SAID MEETING
EXHIBIT 13 E	COPY OF THE CIRCULAR NO. G2-103712/2019 DATED 09.08.2019 ISSUED BY THE DIRECTOR OF PANCHAYATH
EXHIBIT R14(A)	COPY OF THE LOG BOOK CONTAINING THE DETAILS OF THE PANCHAYATH.
EXHIBIT R14(B)	COPY OF THE NOTICE DATED 18.9.2019 ISSUED BY THE PANCHAYATH TO THE NICHAL/JOY MADASSERI.
EXHIBIT R14(C)	COPY OF THE NOTICE NO.A4-5627/19 DATED 18.10.2019 ISSUED BY THE PANCHAYATH.
EXHIBIT R14(D)	COPY OF THE RECEIPT DATED 21.10.2019 ISSUED BY THE PANCHAYATH IN FAVOUR OF SHERIF, BISMI CHICKEN.
EXHIBIT R14(E)	COPY OF THE RECEIPT DATED 21.10.2019 ISSUED BY THE PANCHAYATH IN FOVOUR OF AHAMMED.

EXHIBIT R14(F)	COPY OF THE RECEIPT DATED 22.10.2019 ISSUED BY THE PANCHAYATH IN FAVOUR OF C.V.JOY, MADASSERI FISH MALL.
EXHIBIT R14(G)	COPY OF THE CIRCULAR NO. G2-10372/19 DATED 9.8.2019 ISSUED BY THE DIRECTOR OF PANCHAYATH.
EXHIBIT R15(A)	COPY OF THE MINUTES OF THE PANCHAYATH DATED 12/10/2018
EXHIBIT R15(B)	COPY OF THE NOTICE NO.B4-6336/18-19 DATED 15/10/2018 ISSUED BY THE PANCHAYATH
EXHIBIT R15(C)	COPY OF THE PROCEEDINGS NO.A2.18/14(29) DATED 15/10/2018 ISSUED BY THE PANCHAYATH
EXHIBIT R15(D)	COPY OF THE PROCEEDINGS NO.A2-18/19 (33) DATED 2/3/2019 ISSUED BY THE PANCHAYATH
EXHIBIT R15(E)	COPY OF THE CIRCULAR NO.G2-103712/19 DATED 9/8/2019 ISSUED BY THE DIRECTOR OF PANCHAYATH
EXHIBIT R15(F)	COPY OF CASH RECEIPT NO.A 2610635
EXHIBIT R15(G)	COPY OF CASH RECEIPT NO.A 2610607
EXHIBIT R6(A)	THE TRUE PHOTOCOPY OF THE NOTICE DATED 11.7.019 ISSUED BY SECRETARY, ANGAMALY MUNICIPALITY TO ADVERTISEMENT AGENCIES
EXHIBIT R6(B)	THE TRUE PHOTOCOPY OF THE REQUEST FORWARDED TO THE STATION HOUSE OFFICER, BY SECRETARY, ANGAMALY DATED 24.10.2019.
EXHIBIT R6(C)	THE TRUE PHOTOCOPY OF THE REQUEST DATED 5.3.2019 FORWARDED TO THE STATION HOUSE OFFICER, ANGAMALY POLICE STATION
EXHIBIT R6(D)	THE TRUE PHOTOCOPY OF THE REQUEST DATED 5.12.2018 TO THE STATION HOUSE OFFICER, ANGAMALY POLICE STATION.
EXHIBIT R6(E)	THE TRUE PHOTOCOPY OF THE NOTICE, DATED 6.12.2018 ISSUED BY THE MUNICIPALITY TO THE ASSISTANT EXECUTIVE ENGINEER, KSEB ANGAMALY.

APPENDIX OF WP(C) 27642/2021

PETITIONER'S EXHIBITS

Exhibit P1	TRUE COPY OF NOTICE DATED 1/12/21 ISSUED BY THE 1ST RESPONDENT.
Exhibit P2	TRUE COPY OF ORDER DATED 23/11/21 ISSUED BY THE SECRETARY OF THRISSUR CORPORATION.
Exhibit P3	TRUE COPY OF CIRCULAR DATED 9/7/21 ISSUED BY THE GOVERNMENT.
Exhibit P4	TRUE COPY OF PHOTOGRAPHS OF THE BOARDS CONTAINING TRAFFIC SIGNS AND ADVERTISEMENTS SEEN ERECTED WITHIN THE CORPORATION LIMIT OF THRISSUR CORPORATION.
Exhibit P5	TRUE COPY OF MINUTES OF THE MEETING DATED 23/10/21 OF TRAFFIC REGULATORY COMMITTEE.
Exhibit P6	TRUE COPY OF PHOTOGRAPH OF TRAFFIC SIGN BOARDS EXISTING BY THE SIDE OF PATTURAIKKAL PEINGAVU ROAD.
Exhibit P7	TRUE COPY OF FIR PREPARED IN CONNECTION WITH REMOVAL UNAUTHORIZED BOARDS.

RESPONDENTS' EXHIBITS:

ANNEXURE R1(a)	TRUE COPY OF THE INVOICE NO.C/69/21-22 DATED 8.12.2021.
ANNEXURE R1(b)	TRUE COPY OF THE LETTER NO.761/TDR/TFC/2019/RC DATED 26.12.2019.
ANNEXURE R1(c)	TRUE COPY OF THE PHOTOGRAPHS.
ANNEXURE R1(d)	TRUE COPY OF THE DETAILS OF THE ACCIDENT CASES REGISTERED AT THRISSUR EAST POLICE STATION AND TRAFFIC POLICE STATION AT PATTURACKAL, PERINGAVU, KOVILAKATHUMPADAM AND ASWINI JN.
EXHIBIT R3(a)	TRUE COPY OF MINUTES OF THE TRAFFIC REGULATORY COMMITTEE CONVENED ON 7.11.2021.
EXHIBIT R3(b)	TRUE COPY OF THE COMMUNICATION DATED 13.1.2022 ISSUED BY THE ASSISTANT ENGINEER, PWD ROAD SECTION, THRISSUR.

// TRUE COPY //

P.S. TO JUDGE